International Labour Organization

▶ GB.356/INS/15(Rev.2)

Governing Body

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Institutional Section **INS**

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Fifteenth item on the agenda

Complaint submitted under article 26 of the ILO Constitution alleging non-observance by Saudi Arabia of Conventions Nos 29, 95 and 111

1. At its 355th Session (November 2025), the Governing Body examined a report of the Officers on a complaint concerning non-observance by the Government of Saudi Arabia of the Forced Labour Convention, 1930 (No. 29), the Protection of Wages Convention, 1949 (No. 95), the Discrimination (Employment and Occupation) Convention, 1958 (No. 111), the Migrant Workers (Supplementary Provisions) Convention, 1975 (No. 143), and the Occupational Safety and Health Convention, 1981 (No. 155), submitted under article 26 of the ILO Constitution by several Workers' delegates to the 113th Session (2025) of the International Labour Conference. [1]

2. Taking into account the conditions established in article 26 of the ILO Constitution, the Governing Body: (a) decided that the complaint was receivable in relation to Conventions Nos 29, 95 and 111, and not receivable in relation to Conventions Nos 143 and 155; (b) requested the Director-General to transmit the complaint to the Government of Saudi Arabia, inviting it to communicate its observations on the complaint by 30 January 2026; (c) acknowledging the importance of dialogue between the parties, encouraged them to maintain their constructive engagement and requested the Director-General to provide any support needed to facilitate that process and to report to the Governing Body at its next session in March–April 2026; (d) decided to place the item on the agenda of the 356th Session (March–April 2026) of the Governing Body. [2]

[1] GB.355/INS/17/1.

[2] GB.355/PV(Rev.1), para. 873.

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3. The Director-General informed the Government of Saudi Arabia on 22 December 2025 of the decision adopted by the Governing Body and requested it to communicate its observations on the complaint.

4. In a communication dated 29 January 2026, the Government communicated its observations on the complaint (see appendix). The Government indicates that Saudi Arabia has strong protections for migrant workers. It recalls that it has undertaken extensive labour law reforms in close cooperation with the ILO and that these reforms are ongoing. It considers that the complaint is not receivable and is inadmissible, and that it should be dismissed on the merits. It requests the Governing Body to close the complaint procedure. In support of its observations, the Government also communicated a report published by the World Bank Group in January 2026 entitled *A Decade of Progress: Inside Saudi Arabia's Labor Market Transformation*. [3]

5. It is recalled that the Committee of Experts on the Application of Conventions and Recommendations (CEACR) has made repeated observations to the Government of Saudi Arabia regarding the observance of Conventions Nos 29 and 111. Regarding Convention No. 95, which was ratified more recently, the CEACR adopted only one observation in 2024. The Conference Committee on the Application of Standards examined various matters related to the observance in law and practice of Convention No. 29 (in 2014) and Convention No. 111 (in 2005 and 2013). It should also be noted that the report of the tripartite committee established to examine a representation made by Building and Wood Workers' International (BWI) under article 24 of the Constitution of the International Labour Organization, alleging non-observance by Saudi Arabia of various Conventions, including Conventions Nos 29, 95 and 111, was approved by the Governing Body at its 355th session. The Governing Body requested the Government to provide reports on the application of the Conventions covered by the representation by 1 September 2026, including regarding the follow-up given to the Committee's conclusions and recommendations, for examination by the CEACR. It decided to make the report public and close the procedure initiated by the representation. [4]

6. The parties to the complaint have informed the Director-General of their commitment to continue engaging to address the outstanding issues between them.

7. In accordance with article 26 of the Constitution, it is for the Governing Body to take the necessary decisions concerning future action on this complaint.

▶ Draft decision

8. **The Governing Body took note of the report and the information provided by the Office, encouraged the parties to further pursue their dialogue to address the outstanding issues between them and decided to defer the discussion on the item to its 358th Session (November 2026).**

[3] Available at: https://documents.worldbank.org/en/publication/documents-reports/documentdetail/099012226144031210.

[4] GB.355/INS/16/7.

▶ Appendix

Response from the Government of Saudi Arabia (January 2026)

1. INTRODUCTION

1. The Kingdom of Saudi Arabia submits this Response to the complaint under Article 26 of the International Labour Organization's ("**ILO**") Constitution made by certain workers' delegates ("**Complainants**") during the 113th session of the International Labour Conference on 2–13 June 2025 (the "**Complaint**"). [1] This Response is accompanied by [●] annexes containing [●] factual exhibits and [●] legal exhibits.

2. The Complaint is without merit and should be rejected by the ILO Governing Body as inadmissible. Separately, notwithstanding the Governing Body's decision in November 2025, the Kingdom of Saudi Arabia maintains that the Complaint is also non-receivable. [2] Notably, over 30 States publicly supported the Kingdom of Saudi Arabia's position that the Complaint is non-receivable at the ILO Governing Body's 355th session in November 2025. [3] In stark contrast, not one single State expressed the view that the Complaint was admissible or receivable.

3. The Complaint is duplicative of, and interferes with, the ILO's existing technical assistance programme with the Kingdom of Saudi Arabia. The Kingdom of Saudi Arabia itself initiated this technical assistance programme with the ILO. This programme is designed to address the matters related to the Complaint. If a Commission of Inquiry were established pursuant to Article 26 and issued recommendations, this would ultimately result in technical assistance from the ILO to the Kingdom of Saudi Arabia. Such technical assistance is, however, already underway. The Article 26 complaint procedure therefore serves no further goal. [4]

4. Notably, the Complaint is equally inadmissible as it is duplicative of, and interferes with, the ILO's supervisory procedures in relation to the Kingdom of Saudi Arabia. For example, the Complaint concerns matters under the same ILO conventions that have been addressed in an ILO procedure instituted by a representation brought under Article 24 of the ILO Constitution by Building and Wood Workers' International on 5 June 2024 (the "**BWI Representation**"), namely, the Forced Labour Convention, 1930 (No. 29) ("**Convention No. 29**"), the Protection of Wages Convention, 1949 (No. 95) ("**Convention No. 95**") and the Discrimination (Employment and Occupation) Convention, 1958 (No. 111) ("**Convention No. 111**"). [5] At its 355th session (November 2025) the Governing Body closed the procedure concerning the BWI Representation. The Governing Body requested the Government of Saudi Arabia to provide to the Committee of Experts on the Application of Conventions and Recommendations "no later than 1 September 2026, reports on the application of [these three conventions], including information on the follow-up given to the Committee's conclusions and recommendations, for examination at its 2026 session". [6]

5. In addition, the Complaint is also duplicative and redundant with other ILO supervisory procedures that the Kingdom of Saudi Arabia is currently subject to. These are:

   a. a complaint to the Committee on Freedom of Association brought by Building and Wood Workers' International on 5 June 2024 [7] and

   b. ordinary supervisory procedures under Articles 19 and 22 of the ILO Constitution. [8] The Complaint itself acknowledges that "[m]any of the allegations listed in the complaint are

already subject of comments by the [Committee of Experts on the Application of Conventions and Recommendations] under Conventions Nos. 29 and 111, et al". [9] For example, in its most recent report, the Committee of Experts on the Application of Conventions and Recommendations considered the Kingdom of Saudi Arabia's compliance with the Convention No. 29 and its Protocol of 2014 ("**2014 Protocol**"), both treaties that are subject of the Complaint. The Committee of Experts requested the Kingdom of Saudi Arabia to take specific actions with respect to the trafficking of victims and labour exploitation. It noted that the BWI Representation covers similar issues to those it supervises, i.e., on "employment relations of migrant workers and abusive practices that amount to forced labour". [10] It therefore "decided to defer the examination of these issues until the Governing Body adopts its report to the [BWI] representation" [11].

6. The Kingdom of Saudi Arabia strongly rejects the allegations in the Complaint. The Kingdom of Saudi Arabia has strong protections for migrant workers in the Kingdom, including workers from Africa (see **Section 2**).

7. In line with the Kingdom of Saudi Arabia's strong commitment to adhere to its international labour law obligations, it is continually working with the ILO and other stakeholders (e.g., trade unions and African States) to improve labour conditions in the Kingdom of Saudi Arabia even further (see **Section 3**).

8. The Kingdom of Saudi Arabia has also regularly engaged with trade unions, including with the International Trade Union Confederation (the "**ITUC**"), in productive social dialogue. In fact, even prior to the Complaint being lodged, the Kingdom of Saudi Arabia has engaged with the ITUC and the ILO together. Discussions between the ITUC, the ILO and the Kingdom of Saudi Arabia are ongoing as of the date of this response. It was thus surprised by and regrets the filing of the Complaint as well as some of the public statements which the ITUC has made in relation to it. This confrontational approach adopted by the ITUC and the Complainants negates the ongoing dialogue and collaboration and is inconsistent with the mission of the ILO (see **Section 4**).

9. As this response details, notwithstanding that the ILO Governing Body has determined that the Complaint is receivable in relation to Convention No. 29, Convention No. 95 and Convention No. 111, the Governing Body should close the Complaint procedure against the Kingdom of Saudi Arabia at its next session in March 2026 because:

   a. even if the Complaint is receivable, *quod non*, it is inadmissible because the Kingdom of Saudi Arabia is already seeking technical assistance from the ILO on matters related to the Complaint (see **Section 5.1.1**);

   b. even if the Complaint is receivable, *quod non*, it is inadmissible because materially similar allegations in the Complaint have already been considered in the BWI Representation and other ongoing ILO supervisory procedures (see **Section 5.1.2**);

   c. even if the Complaint is receivable, *quod non*, the Complaint is inadmissible because it is premature and does not take into account the Kingdom of Saudi Arabia's ongoing reforms (see **Section 5.1.3**);

   d. in any case, the Complaint is not receivable in full because it alleges violations of ILO materials that do not fall within the ambit of an Article 26 complaint procedure and which the Kingdom of Saudi Arabia has not ratified. The ILO Governing Body has recognised this in respect of the Migrant Workers (Supplementary Provisions) Convention, 1975 (No. 143) ("**Convention No. 143**") and the Occupational Safety and Health Convention, 1981 (No. 155) ("**Convention No. 155**"). [12] For the avoidance of doubt, for the same reasons, the

Complaint is also not receivable in relation to any other unratified convention or international labour standard that the Complaint mentions. [13] It would be unprecedented and contrary to the ILO Constitution [14] for the ILO to open a complaint procedure under Article 26 of the ILO Constitution concerning allegations from conventions unratified by an ILO Member State or general international labour standards (see **Section 5.2.1**); [15]

e. the Complaint is also not receivable in full as it raises allegations that do not allege a violation of an ILO convention (see **Section 5.2.2**); [16]

f. even if the Complaint is receivable and admissible, *quod non*, the Complaint fails on the merits because the Kingdom of Saudi Arabia is currently engaging with the ILO and the ITUC to address the allegations in the Complaint (see **Section 6.1**); [17]

g. even if the Complaint is receivable and admissible, *quod non*, the Complaint fails on the merits because the allegations in the Complaint are not sufficiently evidenced or proved (see **Section 6.2**); [18] and

h. even if the Complaint is receivable and admissible, *quod non*, the Complaint fails on the merits because the unevidenced factual allegations do not rise to a violation of the relevant ILO conventions cited by the Complainants in the Complaint (see **Section 6.3**). [19]

10. After this Introduction, **Section 2** provides an overview of the strong protections in place for workers in the Kingdom of Saudi Arabia. **Section 3** explains that the Kingdom of Saudi Arabia's labour law protections are consistently improving. **Section 4** provides a response to public comments made against the Kingdom of Saudi Arabia. **Section 5** clarifies why the Complaint is neither receivable nor admissible. **Section 6** summarises the Kingdom of Saudi Arabia's arguments on why the Complaint should be dismissed on the merits. **Section 7** concludes the Response with the Kingdom of Saudi Arabia's request for relief.

2. THE KINGDOM OF SAUDI ARABIA HAS A STRONG LEGAL FRAMEWORK FOR PROTECTING MIGRANT WORKERS

11. An international organisation should analyse a complaint based on facts and evidence, not innuendo that is not grounded in proof. In this regard, the Kingdom of Saudi Arabia already has strong, codified protections for workers (citizens and foreign residents alike) under the Labour Law. [20] The Labour Law prohibits forced labour and unlawful wage withholding and requires respectful treatment; [21] sets binding limits on working time and rest, including daily/weekly caps and a minimum break (no less than half an hour) after five consecutive hours; [22] and imposes employer duties for occupational safety and health ("**OSH**"). [23] This framework is complemented by the Anti-Harassment Law [24], which obliges government and private entities to adopt workplace measures to prevent and combat harassment, [25] and by the Anti-Trafficking in Persons Law [26], which mandates assistance and protection for victims – including medical care, shelter, and where necessary, permission for non-Saudi victims to remain or work during proceedings. [27] Enforcement mechanisms include the "Wage Protection Program" that electronically monitors on-time, full wage payments for Saudis and non-Saudis, [28] the pre-litigation amicable settlement process administered by the Ministry of Human Resources and Social Development (the "**MHRSD**"), [29] and proceedings before specialised Labour Courts with jurisdiction over wage, termination and other employment disputes, [30] with e-litigation via the Najiz portal enabling electronic filing, exchange of memoranda, viewing all case filings, digital sessions, delivery of judgements, and appeals. [31] Additionally, labour inspection is carried out under the Labour Law Implementing Regulations for Labour Inspection [32], which sets clear inspection procedures, defines inspectors' powers and employers' obligations, and provides corrective measures and penalties – thereby

strengthening enforcement and ensuring procedural fairness. These protections are further operationalised through official policies and guides, including the National Policy for the Elimination of Forced Labour, a government policy articulating the Kingdom's commitment, governance arrangements and cross-agency coordination to eradicate forced labour; [33] the Guide to Services Provided for Expatriates, a consolidated reference that signposts expatriate workers to rights, key procedures and complaint channels; [34] the Controls to Improve the Contractual Relationship of Domestic Workers and their Equivalents, ministerial controls setting contractual standards, obligations and dispute-handling rules for domestic work relationships; [35] and the Guide to the Rights and Obligations of Domestic Workers in the Kingdom of Saudi Arabia, an official explanatory guide outlining rights, duties and recourse pathways for domestic workers. [36] In addition, employment contracts are documented electronically through the MHRSD/Qiwa ecosystem; employers create and document contracts online; employees can view, approve, reject or request amendments; and once both parties agree, the contract is certified by MHRSD, providing an authoritative, time-stamped record accessible to each party. [37] The Executive Regulations of the Labour Law and its Annexes mandate the use of a unified employment-contract model with mandatory clauses, ensuring completeness and transparency of terms. [38] Furthermore, the Contractual Relationship Improvement Initiative modernised key aspects of the employment relationship, most notably job-mobility and exit procedures, strengthening workers' ability to exercise their rights. [39] Workers may also coordinate nationally through the National Committee of Workers' Committees (SNC), formed by the elected heads of workers' committees to represent workers domestically and internationally. [40]

12. Further, the Kingdom of Saudi Arabia recognises the right of workers, both Saudis and non-Saudis, to form committees to provide representation and advocacy and advance their interests. The Kingdom of Saudi Arabia has implemented the following policies, legislation, and agencies to protect the rights of workers to form associations:

    a. Rules of Formation of Labour Committees issued pursuant to Council of Ministers Resolution no. 12 dated 2 April 2001, together with the Implementing Regulation issued pursuant to Ministerial Resolution No. 1691 dated 10 April 2002. The main purpose of these committees is to represent workers, improve workplace conditions, and advocate for worker rights. [41] These rules marked a significant development in promoting social dialogue and collective labour representation in the Kingdom of Saudi Arabia.

    b. Law on Civil Associations and Foundations issued pursuant to Royal Decree No. R/8 dated 01 December 2015, together with the Implementing Regulation issued pursuant to Ministerial Resolution No. 73739 dated 20 March 2016. The law provides a legal framework for the formation, activities, and management of non-profit organisations, promoting civil engagement and social welfare activities;

    c. Employer Compliance Guide issued by the MHRSD, which consolidates employers' obligations under the Labour Law (covering internal regulations, discipline, payroll, OSH, and complaint handling) to support establishments in implementing compliant internal procedures consistent with the Labour Law and the rules governing workers' committees; [42] and

    d. The Labour Affairs Agency (one of the agencies affiliated with the MHRSD), which confirms the Ministry's mandate to oversee policies and systems that improve labour relations within establishments. [43]

3. THE KINGDOM OF SAUDI ARABIA'S LEGAL FRAMEWORK HAS ALREADY MADE SIGNIFICANT PRORESSS AND CONTINUES TO MAKE FURTHER PROGRESS

13. The Kingdom of Saudi Arabia understands that progress can always be made, even when the existing worker protections are robust and legally supported. The Kingdom of Saudi Arabia has, since 2015, undertaken an extensive reform of its labour laws – in close coordination with the ILO. For example, the Kingdom of Saudi Arabia has entered into a Programme of Cooperation with the ILO. [44] The ILO lauded the Kingdom of Saudi Arabia's reforms, noting that:

> [a]mong other achievements, the Saudi government has made good progress in recent years on the ratification and implementation of international labour standards. The new phase of cooperation will enable the Government to build and expand upon these achievements. [45]

14. That reform programme continues. For example, the Kingdom of Saudi Arabia has implemented the following policies and legislation, each of which further strengthens worker protections in the Kingdom:

1) Labour Regulatory Framework

a. Labour Law issued pursuant to Royal Decree No. m/51 dated 27 September 2005, which lays out the basic rights and responsibilities of workers and employers;

b. Executive Regulations of the Labour Law and its Annexes issued pursuant to Ministerial Resolution No. 70273 dated 18 December 2018, which clarify the details of the Labour Law, promote a safe workplace, protect the rights of all workers, and help advance and modernize the Kingdom's labour market; [46]

c. Labour Law amendments issued pursuant to Royal Decree No. M/44 dated 12 August 2024 (came into effect on 19 February 2025); The amendments seek to improve the labour market, enhance job stability, safeguard the rights of all parties in the employment relationship. Among other, the amendments include expanding provisions on leave and contracts; revising grievance procedures; imposing penalties for unlicensed recruitment activities; and requiring employers to adopt training and qualification policies to upskill employees. these changes followed an extensive study that involved benchmarking against other countries' labour laws and global best practices, with input from more than 1,300 participants via the Public Consultation Platform. They also included consultation with private sector entities, government agencies, worker committees, and HR experts; [47]

d. Table of Violations and Penalties issued pursuant to Ministerial Resolution No. 75913 dated 03 December 2023 and updated pursuant to Ministerial Resolution No. 44558 dated 06 October 2024, which updates the schedule of fines/penalties under the Labour Law and its Implementing Regulations to improve market compliance; [48] The table also serves as a regulatory tool to identify and classify violations that constitute potential indicators of forced labour, enabling such cases to be addressed through a parallel assessment track to verify suspected forced labour situations and trigger appropriate preventive or protective measures, in addition to administrative enforcement.

2) Labour Inspection and Safety & Health

e. Executive Regulations for the Control and Organisation of Labour Inspection issued pursuant to Ministerial Resolution No. 120279 dated 27 February 2025, which establishes the framework for labour inspections by setting inspectors' powers and duties, organizing proactive and complaint-based inspections, detailing employers' cooperation obligations and inspection procedures, and replacing the 2007 inspection regulation; The framework

is further strengthened through a risk-based inspection model, comprehensive coverage of high-risk sectors, and advanced digital inspection tools that enable real-time documentation and evidence capture, and are integrated with wage protection, employment contract documentation, and occupational safety and health systems, thereby enhancing preventive enforcement and compliance.

f. National Policy On Occupational Safety and Health issued pursuant to Council of Ministers Resolution No. 328 dated 26 January 2021, [49] which establishes a national OSH governance structure; mandates review and updating of OSH legislation, regulations and programs; creates a comprehensive system for monitoring, documenting and reporting occupational accidents and diseases; coordinates roles among government agencies; and provides for inspectorate enforcement and statutory penalties to strengthen compliance;

g. The National Council for Occupational Safety & Health, established pursuant to Council of Ministers Resolution No. 379 dated 8 February 2022, which is mandated to coordinate and oversee national OSH governance and policy implementation in the Kingdom of Saudi Arabia; [50]

h. Ministerial Resolution No. 1/1559 dated 5 June 2010 prohibiting employers from assigning outdoor work under direct sunlight from 12 p.m. to 3 p.m. between July 1 and August 31. [51] The resolution comes in application of Article 122 of the Labour Law, which requires employers to ensure worker safety;

3) Wage Protection and Insurance Safeguards for Workers

i) Wage Protection Program, initiated in 2013, and subsequently refined in 2018 in accordance with Ministerial Resolution No. 803 dated 26 April 2018. The program ensures that employers pay their employees' wages on time and in full through a regulated system, [52] monitors salary payments and aims to promote transparency and fairness in the employer-employee relationship, thereby protecting workers' rights;

j) Domestic Workers' Wage Protection - Electronic Service (launched by the MHRSD on 13 May 2024), which extends wage protection to domestic workers through "Musaned" platform, e-recorded salary payments and compliance monitoring; [53]

k) Insurance Product Initiative issued pursuant to Council of Ministers Resolution No. 733 dated 7 July 2020, which ensures that all employees are compensated if their company runs into financial difficulties. [54] All costs of the insurance are covered by the State;

l) Guidelines for the Expatriate Worker Wage Insurance Product for Private Sector Establishments issued by MHRSD on 6 October 2024, which operationalise the expatriate wage-insurance scheme for private-sector employer defaults by setting out the rights and benefits of expatriate workers (including compensation for unpaid wages exceeding 60 days and travel ticket costs), eligibility conditions, and claim procedures. This initiative seeks to ensure the rights and entitlements of expatriate workers in private sector establishments, aiming to reduce the risks of them not receiving their dues and to enable their safe return to their home countries if necessary;

m) Insurance on Domestic Worker Contracts issued pursuant to Council of Ministers Resolution No. 591 dated 25 May 2021, which sets state-supported insurance product to safeguard worker entitlements and mitigate employer default risk; [55]

4) Contractual Relationship Management and Forced Labour Prevention

n) National Policy for the Elimination of Forced Labour, issued pursuant to Council of Ministers Resolution No. 524 dated 21 January 2025, setting prevention, protection and victim-centred measures and strengthening inter-agency coordination; [56]

o) The Guide for Improving Contractual Relationships (Labour Reform Initiative "LRI" Services Guidebook), which explains and operationalises job mobility, exit/re-entry and related procedures to modernise the employment relationship and strengthen parties' rights; [57]

p) Council of Ministers Resolution No. 195 dated 09 November 2021, assigning the MHRSD to manage the contractual relationship from contract registration and documentation through to termination/expiry, and to automate related procedures;

q) Ministerial Resolution No. 75506 dated 14 February 2023, mandating establishments to document employment contracts via Qiwa platform, from registration/updates (profession, wage, qualifications) until termination or expiry of the contractual relationship; [58]

r) The Procedural Guide for Ending the Contractual Relationship (including worker "absence/discontinuity" cases), which sets procedures and safeguards to protect workers' rights and organise termination workflows and transfers; [59]

s) The Guideline for the Initiative Documented Employment Contract as an Enforceable Instrument, launched by MHRSD in partnership with the Ministry of Justice, under which a documented contract (including its wage clause) is recognized for direct enforcement, expediting wage-related claims through enforcement mechanisms; [60]

5) Equality and Non-Discrimination

t. National Policy for Promoting Equal Opportunities and Equal Treatment in Employment and Occupation in the Kingdom issued pursuant to Council of Ministers Resolution No. 416 dated 10 January 2023, [61] which aims to eliminate discrimination in employment and occupation across entities subject to the Civil Service Regulations and Labour Regulations; sets objectives to develop systems and policies that explicitly prohibit discrimination and ensure equal treatment; and requires procedures, programs and initiatives to enable under-represented groups to enter and remain in the labour market;

6) Worker Representation

u. Rules for Forming Labour Committees, issued pursuant to Council of Ministers Resolution No. 12 dated 2 April 2001, granting employees the right to form labour committees to represent and advocate for their interests;

7) Domestic Workers

v. Regulation for Domestic Workers and Those in Similar Positions, issued pursuant to Ministerial Resolution No. 40676 dated 02 October 2023, which governs the contractual relationship between domestic workers and employers;

8) Dispute Resolution

w. Ministerial Resolution No. 91285 dated 2 January 2024, approving the Rules and Procedures Regulating the Amicable Settlement of Labour Disputes, which establishes the pre-litigation "amicable settlement" process and timelines before the MHRSD, enabling

workers (including migrant workers) and establishments to file complaints electronically and resolve disputes prior to court proceedings;

9) Sector-Specific Regulations

x. Regulations for Agricultural Workers, Private Herdsmen, and those in similar roles issued pursuant to Ministerial Resolution No. 115919 dated 18 February 2025, which sets sectoral protections and standards for these categories; [62] and

y. Regulation of the Maritime Work Contract Statute issued pursuant to Ministerial Resolution No. 126322 dated 14 March 2025, which regulates maritime work relations, minimum living/working conditions on board, and the obligations/rights of shipowners and seafarers.

15. Additionally, the Kingdom of Saudi Arabia has recently ratified several international instruments to align with global labour standards, aiming to improve laws and procedures that enhance protections for both workers and employers. This includes, for example:

a. ILO Convention No. 187 on Promotional Framework for Occupational Safety and Health Convention (ratified in 2024); [63]

b. ILO Convention No. 120 on Hygiene in Commerce and Offices (ratified in December 2020); [64]

c. Convention No. 95 on Wage Protection (ratified in December 2020); [65] and

d. Protocol of 2014 to the Forced Labour Convention No. 29 (ratified in May 2021). [66]

16. The Kingdom of Saudi Arabia welcomes continued reform and development. Vision 2030 has been a resounding example of how the Kingdom of Saudi Arabia's leadership is dedicated to progress, not only for its country, not even just its region, but indeed for the whole world. The Kingdom of Saudi Arabia's reforms should not be improperly criticised based on weak and unevidenced allegations. The ILO maintain an evidence-based approach that encourages continued reform across jurisdictions, which ultimately benefits workers everywhere, including in countries considering similar initiatives.

4. RESPONSE TO PUBLIC COMMENTS MADE AGAINST THE KINGDOM OF SAUDI ARABIA, INCLUDING IN THE COMPLAINT, CONCERNING THE KINGDOM OF SAUDI ARABIA'S LABOUR LAWS AND PRACTICES

17. The Kingdom of Saudi Arabia expresses its surprise and regret regarding the aggressive, non-diplomatic tone of the Complaint, as well as the public remarks made by the Complainants during the 113th session of the International Labour Conference and the ITUC. In this regard, the Kingdom rejects unsubstantiated and provocative allegations made by one of the complainants, who claimed the following:

> Workers are being treated as disposable in Saudi Arabia. They leave alive and return in coffins. [67]

18. The Kingdom of Saudi Arabia considers such rhetoric to be a departure from the principles of the constructive social dialogue and the objective technical standards expected within the ILO's supervisory mechanisms.

19. Indeed, the ITUC appears to have taken personal umbrage at perceived slights. For example, the Complaint complains that the Kingdom of Saudi Arabia did not meet with the ITUC in Namibia on 16 and 17 April 2024. [68] Putting aside that a State cannot be required to meet everyone who wants a meeting anywhere in the world, the ITUC simply failed to inform the ILO

of, for example, its January 2025 meeting in the Kingdom of Saudi Arabia which took place before the Complainants made the Complaint (see further below).

20. The confrontational approach adopted by the ITUC and the Complainants is also inconsistent with the mission of the ILO. The ILO exists to advance the cooperation between States, workers' organisations and employers' organisations.

21. Further, volatile and aggressive remarks about workers' conditions in the Kingdom of Saudi Arabia were made by the Chairperson of the Workers' Group of the Governing Body at the introduction of the Article 26 complaint during the closing session of the 113th session of the International Labour Conference. [69] This intervention came without any prior notice to the Kingdom of Saudi Arabia. The Kingdom of Saudi Arabia was not given the opportunity to respond to these comments. The representations that were made in that public statement were wholly unsubstantiated and misleading. For example, the Chairperson stated that "[t]hirteen million men and women … are enduring grave abuses under the kafala sponsorship system". [70] The statement, lacks both factual accuracy and contextual awareness of recent legislative and policy developments in KSA. According to the most recent data published by the General Authority for Statistics, the total number of foreign workers in the Kingdom stands at approximately 12.93 million. The statement therefore implies that every single foreign worker in Saudi Arabia is enduring "grave abuses" under the kafala system. Such an assertion effectively assumes a 100% abuse rate, which is manifestly implausible and unsupported by any empirical evidence or credible reporting. Moreover, the statement disregards the major legal and structural reforms that have been enacted in recent years. The Kafala system has been replaced by a modernized labour mobility framework that allows migrant workers to change employers, obtain exit and re-entry permits, and manage their employment contracts without the previous restrictive dependencies.

22. The Chairperson also went on to make sweeping statements that in the Kingdom of Saudi Arabia there is "wage theft spanning decades; confiscation of passports; forced labour; recruitment scams; exposure to lethal heat; and horrific deaths on work sites." [71] These statements are made without evidentiary support. In addition, they are vague and completely misrepresent the legislative system and situation of migrant workers in the Kingdom of Saudi Arabia. Contrary to such assertions, in practice, the KSA has established a comprehensive and continuously evolving system to protect workers' rights and ensure fair treatment through a range of legislative, institutional, and digital mechanisms. Among these measures is the Wage Protection Program, which was launched by MHRSD and implemented progressively, initially covering approximately 300 establishments, and later expanded to include more than 900,000 private-sector entities. As of 2024, the program has achieved a compliance rate exceeding 88 percent, protecting the wages of over 8.5 million employees [72]. The system monitors around 300,000 payroll files monthly, representing approximately SAR 35 billion in wages, ensuring that salaries are transferred transparently through official channels and that any irregularities are detected and addressed promptly. This has contributed to Saudi Arabia's recognition as the world's second-ranked country in the global index for combating trafficking in persons, reflecting tangible progress and institutional maturity in addressing labour exploitation. Equally, the claim regarding the confiscation of passports disregards the clear criminalization of such conduct under Saudi law. The Anti-Trafficking in Persons Law, as well as public prosecutorial directives, explicitly classify the act of an employer retaining a worker's passport for the purpose of coercion, fraud, control, exploitation, or threat thereof as a form of human trafficking punishable by up to fifteen years' imprisonment and a fine of one million Saudi riyals. The Public Prosecution has repeatedly confirmed and enforced this position, ensuring that such violations are subject to strict legal consequences. As for allegations related to

workers' exposure to extreme heat, the Labour Law and its implementing regulations contain explicit provisions guaranteeing safe working conditions. Ministerial Resolution No. 1/1559 dated 5 June 2010, issued pursuant to Article 122 of the Labour Law, prohibits employers from assigning outdoor work under direct sunlight between 12 p.m. and 3 p.m. during the months of July and August each year. This rule is actively monitored through field inspections and compliance campaigns to safeguard the health and safety of all workers in outdoor environments. Taken together, these measures form part of a wider legal and institutional reform and introduced a modern labour mobility framework allowing workers to change employers, obtain exit and re-entry permits, and manage their employment contracts with autonomy and transparency. The Chairperson's assertions therefore fail to reflect the KSA's legal and factual reality, misstate the scope and effectiveness of its legal protections, and ignore ongoing reforms that align with international labour standards. The statements made are inaccurate, outdated, and inconsistent with the verified data and legislative developments that define the reality of labour governance in KSA.

23. The comments of the ITUC and the Complainants are surprising given that the Kingdom of Saudi Arabia has regularly met and engaged with the trade unions, including the ITUC. For example, before the Complaint, in July 2019, a high-level ITUC delegation, led by then-General Secretary, visited Riyadh in the Kingdom of Saudi Arabia and met with officials at the newly established labour court. [73] The delegation toured the court's digital facilities, reviewed its procedures, and engaged in discussions concerning the protection of workers' rights. [74] Further, during the Kingdom of Saudi Arabia's presidency of the G20 in 2020, the Kingdom hosted the Labour 20 Summit where the ITUC participated in exchanges with Saudi officials on labour standards and social protection. Also prior to the Complaint, the Kingdom of Saudi Arabia and the ITUC had "ongoing engagement", including "two missions by the ITUC General Secretary". [75] Just in 2025, the Vice Minister of Human Resources and Social Development for Labour and the ITUC General Secretary met to discuss labour rights and the Kingdom of Saudi Arabia's efforts to enhance worker protection in the Kingdom. [76]

24. In fact, since the Complainants made the Complaint, the Kingdom of Saudi Arabia has engaged with the ITUC and the ILO together to resolve the matters raised by the Complaint. Discussions between the ITUC, the ILO and the Kingdom of Saudi Arabia are ongoing as of the date of this Response.

5. THE COMPLAINT IS NOT PROPERLY RECEIVABLE AND IT IS INADMISSIBLE

25. The Complaint is inadmissible [77] and so it would not be appropriate under international law and the ILO's own standards and principles for the ILO to consider the Complaint (see **Section 5.1**), and because it fails to meet the legal threshold (see **Section 5.2**).

26. As mentioned above, over 30 States agreed publicly at the ILO Governing Body's 355th session in November 2025 that the Complaint is non-receivable. [78]

5.1. Even if the Complaint is receivable, *quod non*, it is inadmissible

27. The Complaint is inadmissible. Based on the ILO's consistent practice concerning complaints under Article 26 of the ILO Constitution and settled general principles of international law, the Complaint should be deemed inadmissible and the procedure closed because:

(a) the Kingdom of Saudi Arabia is already seeking technical assistance from the ILO on matters related to the Complaint (see **Section 5.1.1**);

(b) other ILO supervisory procedures considering materially similar allegations have closed their investigation of the allegations, such as procedure concerning the BWI Representation, and others are still ongoing (see **Section 5.1.2**); and

(c) it is premature and does not take account of the Kingdom of Saudi Arabia's ongoing reforms (see **Section 5.1.3**).

5.1.1. The Complaint is inadmissible because the Kingdom of Saudi Arabia is already seeking technical assistance from the ILO on matters related to the Complaint

28. The Complaint is inadmissible as it is duplicative of, and interferes with, the ILO's technical assistance. If a Commission of Inquiry was established and issued recommendations to the Kingdom of Saudi Arabia, this would ultimately lead to technical assistance from the ILO to the Kingdom of Saudi Arabia. Such technical assistance is, however, already underway. The Complaint serves no purpose within the framework of the ILO.

29. The issues in the Complaint are already subject to ongoing engagement between the Kingdom of Saudi Arabia and the ILO through the ILO's technical assistance programme instigated by the Kingdom of Saudi Arabia before the Complaint was lodged. The new complaint procedure would thus interfere with the Kingdom of Saudi Arabia's and the ILO's ongoing efforts to improve migrant worker protections in the Kingdom of Saudi Arabia.

30. The ILO Governing Body has on at least two occasions closed complaints under Article 26 of the ILO Constitution when the State agreed to undertake and follow up with technical assistance with the ILO.[79] For example, the ILO Governing Body "decided to close the complaint procedure under article 26" after receiving "information provided on the technical cooperation programme between the Government of Qatar and the ILO". It further "supported the agreed technical cooperation programme and its implementation modalities".[80]

31. The Kingdom of Saudi Arabia has, on its own initiative, been seeking technical assistance from the ILO since 2018. In June 2025, on the sidelines of the 113th International Labour Conference, the Kingdom of Saudi Arabia and the ILO signed an agreement to launch the third phase of their development cooperation programme.[81] The third phase of the programme is taking place from July 2025 to December 2027. It follows two previous phases, during which the Kingdom of Saudi Arabia and the ILO (in the ILO's words):

> laid important groundwork for labour reform in Saudi Arabia, supporting the development of national employment policies, advancing occupational safety and health standards, strengthening social dialogue institutions and promoting fundamental principles and rights at work. The collaboration has contributed to improvements in female labour force participation, social dialogue mechanisms, skills governance and labour inspection systems.[82]

32. The third phase of the development cooperation programme between the Kingdom of Saudi Arabia and ILO relates to the issues addressed in the Complaint. Among other things, the programme focuses on "ensuring fair recruitment and labour mobility of migrant workers", "protecting the rights of domestic workers", "expanding migrant workers' access to fair judicial processes" and "strengthening occupational safety and health".[83] The outcomes being pursued under the programme include:

- Outcome 1: A robust regulatory framework institutionalizes effective tripartite social dialogue, empowering constituents for evidence-based and consensus-driven policy outcomes.
- Outcome 2: Fair recruitment and labour mobility are enforced across all sectors through reinforced regulatory frameworks and full alignment with international labour standards.

- Outcome 3: Domestic workers' rights and protection are strengthened and formally recognized; fair recruitment and mobility are ensured by aligning systems with international standards.
- Outcome 4: Workers' access to justice is formalized and enhanced through effective complaint systems, better representation, and accessible digital outreach for all, including non-resident workers.
- Outcome 5: Equitable social protection coverage for all workers is achieved through full alignment with international labour standards, including improved compensation and extended benefits.
- Outcome 6: The labour inspectorate's capacity is modernized and strengthened. A robust OSH system is established through policy updates, pilot projects, and increased worker participation.
- Outcome 7: A fair wage-setting mechanism is adopted and implemented through strengthened tripartite consultation and enhanced capacity to design evidence-based wage policies.

33. In addition, allowing the Complaint to continue against the Kingdom of Saudi Arabia would be contrary to settled general principles of international law, which apply to the ILO [84] and the procedure under Article 26 of the ILO Constitution. [85] The principle of the sound administration of justice requires effective and efficient decision-making for fair, equitable, reasonable and efficient outcomes. [86] Similarly, the practice of judicial economy in international law allows a court or tribunal to "refrain from making multiple findings that the same measure is inconsistent with various provisions when a single, or a certain number of findings of inconsistency, would suffice to resolve the dispute". [87] Here, the Article 26 procedure concerning the Kingdom of Saudi Arabia is unlikely to produce any new or effective remedy. The result of an Article 26 complaint procedure is often a recommendation from the Governing Body for the ILO to provide technical assistance to the relevant State to address the allegations in a complaint. [88] Therefore, any potential decision by the ILO Governing Body would necessarily involve the Kingdom of Saudi Arabia accepting technical assistance from the ILO on the relevant issues. However, here, it has already done so.

34. Given that the Kingdom of Saudi Arabia, on its own initiative, engaged in cooperation with the ILO on addressing the issues mentioned in the Complaint through structured technical assistance procedures of the ILO, the Complaint is inadmissible.

5.1.2. The Complaint is inadmissible because other ILO supervisory procedures are already considering materially similar allegations

35. The Complaint is also inadmissible because it concerns similar issues addressed through other ILO supervisory procedures.

36. the Governing Body closed the Article 24 procedure against the Kingdom of Saudi Arabia concerning the BWI Representation, which raises materially the same allegations. The ILO established a tripartite committee to examine the merits of the BWI Representation under, among other conventions, three conventions that are also the subject of this Complaint (i.e., Convention No. 29, Convention No. 95 and Convention No. 111). [89] In particular, the allegations and the evidence used in support of the allegations in the BWI Representation are similar to those in the Complaint. For example, both the BWI Representation and the Complaint raise the following allegations: passport confiscation; [90] non-payment of wages and wage theft; [91] forced

labour indicators present in the Kingdom of Saudi Arabia and workers being subject to abusive living and working conditions. [92] The Complaint itself refers to the BWI Representation. [93] The tripartite committee in the BWI Representation made recommendations to the Kingdom of Saudi Arabia. [94] The Kingdom of Saudi Arabia now only needs to report to the Committee of Experts on the Application of Conventions and Recommends, by 1 September 2026. [95] Thus, to the extent that the issues in the Complaint are materially similar to those in the BWI Representation procedure, the Complaint is inadmissible.

37. Moreover, it would be unprecedented for the ILO to permit multiple supervisory procedures concerning similar allegations against one State. In fact, after diligent legal investigations, the Kingdom of Saudi Arabia has identified no other time that a State has been subject to an Article 26 complaint procedure and also multiple other ILO supervisory procedures at the same time.

38. The ILO's rules on supervisory procedures suggest that the ILO does not intend for one State to be subject to multiple procedures at the same time on similar allegations. For example, if an Article 24 representation "relates to matters and allegations similar to those which have been the subject of a previous representation", then the ILO Governing Body "may decide to postpone the appointment of the [tripartite] committee … until the Committee of Experts on the Application of Conventions and Recommendations has been able, at its next session, to examine the follow-up to the recommendations that were adopted by the Governing Body in relation to the previous representation". [96] The form for submission of Article 24 representations also specifically asks whether "the allegations have already been examined by or submitted to ILO supervisory bodies" and, if they have been, "in what respect any currently submitted allegations are different from those already examined or submitted". [97] By way of another example, the Committee on Freedom of Association suspends its examination of cases where an "independent national jurisdiction whose procedures offer appropriate guarantees" is considering the case. [98] This suggests that the ILO intends to avoid parallel proceedings.

39. After all, it would be contrary to the sound administration of justice and procedural economy discussed in **Section 5.1.1** above for the ILO to permit multiple procedures on the same issues against an ILO Member State like the Kingdom of Saudi Arabia.

40. In addition, allowing the Complaint procedure to continue against the Kingdom of Saudi Arabia would breach the principle of *lis pendens*, another general principle of international law. This principle bars proceedings between parties if there are already existing proceedings between the same or related parties involving the same or related issues [99] This is because the Complaint duplicates other supervisory procedures on the same issues in the Kingdom of Saudi Arabia (listed below).

41. Further, the Kingdom of Saudi Arabia is currently subject to other supervisory procedures on the same issue of worker protections in the Kingdom of Saudi Arabia, which further make the Complaint redundant and duplicative and, thus, inadmissible. These are:

    a. a complaint to the Committee on Freedom of Association brought by Building and Wood Workers' International on 5 June 2024; [100]

    b. ordinary supervisory procedures under Articles 19 and 22 of the ILO Constitution. [101] The Complaint itself acknowledges that "[m]any of the allegations listed in the complaint are already subject of comments by the [Committee of Experts on the Application of Conventions and Recommendations] under Conventions Nos. 29 ad 11, et al". [102] For example, in its most recent report, the Committee of Experts on the Application of Conventions and Recommendations considered the Kingdom of Saudi Arabia's compliance with Convention No. 29 and the 2014 Protocol, both treaties that are the

subject of the Complaint. The Committee of Experts requested the Kingdom of Saudi Arabia to take specific actions with respect to the trafficking of victims and labour exploitation. It noted that the BWI Representation covers similar issues to those it supervises, i.e., on "employment relations of migrant workers and abusive practices that amount to forced labour". [103] It therefore "decided to defer the examination of these issues until the Governing Body adopts its report on the [BWI] representation" [104]; and

c. as discussed in **Section 5.1.1** above, an ILO technical assistance programme that deals directly with the issues related to the Complaint.

42. Since the Complaint raises issues concerning migrant workers' protections, which the Kingdom of Saudi Arabia is already addressing in multiple other ILO supervisory procedures, the Complaint is obstructive and redundant. Therefore, the Complaint is inadmissible.

5.1.3. The Complaint is inadmissible because it is premature and does not take into account the Kingdom of Saudi Arabia's ongoing reforms

43. The Complaint does not relate to ongoing breaches of the relevant ILO Conventions. It cannot as the Kingdom of Saudi Arabia is currently in the process of reforming its labour law system. The Complaint is therefore inadmissible, because it is extremely premature.

44. The Complaint procedure under Article 26 is triggered where an ILO Member State has failed to "secur[e] the effective observance" of the ILO conventions it has ratified. Moreover, a Commission of Inquiry under Article 26 is the highest-level investigative procedure, reserved for accusations concerning "persistent and serious violations" that a State has "repeatedly refused to address". [105] The Kingdom of Saudi Arabia is currently in the process of securing "effective observance" of these conventions, as further discussed in **Section 2** and **Section 3** above. It is thus premature for an investigation to take place in respect of the Kingdom of Saudi Arabia's alleged non-compliance with the ILO conventions it has ratified.

45. As a matter of international law, a breach of an obligation cannot occur on the basis of what might happen or what might be. A breach arises upon an act committed by or on omission by the State. [106] This is implicit, for example, in the notion of "breach" in the Articles on the Responsibility of States for Internationally Wrongful Acts (the "**Articles on the Responsibility of States**"). Articles 12 to 15 of the Articles on the Responsibility of States provide as follows:

> Article 12. Existence of a breach of an international obligation
>
> There is a breach of an international obligation by a State when an act of that State is not in conformity with what is required of it by that obligation, regardless of its origin or character ...
>
> Article 14. Extension in time of the breach of an international obligation
>
> 1. The breach of an international obligation by an act of a State not having a continuing character occurs at the moment when the act is performed, even if its effects continue.
>
> 2. The breach of an international obligation by an act of a State having a continuing character extends over the entire period during which the act continues and remains not in conformity with the international obligation.
>
> 3. The breach of an international obligation requiring a State to prevent a given event occurs when the event occurs and extends over the entire period during which the event continues and remains not in conformity with that obligation.
>
> Article 15. Breach consisting of a composite act
>
> 1. The breach of an international obligation by a State through a series of actions or omissions defined in aggregate as wrongful occurs when the action or omission occurs which, taken with the other actions or omissions, is sufficient to constitute the wrongful act.

> 2. In such a case, the breach extends over the entire period starting with the first of the actions or omissions of the series and lasts for as long as these actions or omissions are repeated and remain not in conformity with the international obligation. [107]

46. Articles 12 and 14 (and Article 15 in relation to composite acts constituting a breach) impose a temporal condition on the existence of a breach: the breach exists only when an act is unlawful under international law and only continues to occur when the act and international law remain incongruent. That is, a breach does not exist when the behaviour of the State is or may be in conformity with international law.

47. Moreover, the procedure in Article 26 of the ILO Constitution should only be relied on where a Member State has made "persistent and serious" breaches of the convention(s) it has ratified. Article 26 states that a Complaint can be made where a Member State has failed to "secur[e] the effective observance" of one the conventions it has ratified. A Commission of Inquiry will then be established "when a member state is accused of committing persistent and serious violations and has repeatedly refused to address them". [108] There are, for example, many instances of the ILO Governing Body deferring the decision on whether to appoint a Commission of Inquiry until after the State has had the opportunity to engage with the complaint by, for example, preparing legislation to address the issues raised in the complaint, receiving technical assistance from the ILO, and consulting with domestic labour organisations. [109]

48. The Kingdom of Saudi Arabia is currently in the process of undertaking substantial reforms of its labour system. Much of the reform is in coordination with the ILO. These reforms show that the Kingdom of Saudi Arabia has not "repeatedly refused to address" any potential breaches of its commitments under the ILO conventions it has ratified. Moreover, until the reforms are complete, it cannot be found that the Kingdom of Saudi Arabia has committed any "persistent" or "serious" violations of its obligations under these conventions. [110]

49. Examples of reforms being undertaken by the Kingdom of Saudi Arabia, which are also further set out in **Section 3**:

    a. Labour Law amendments issued pursuant to Royal Decree No. M/44 dated 12/08/2024 (came into effect on 19 February 2025);

    b. National Policy for Promoting Equal Opportunities and Equal Treatment in Employment and Occupation in the Kingdom issued pursuant to Council of Ministers Resolution No. 416 dated 10 January 2023;

    c. National Policy for the Elimination of Forced Labour, issued pursuant to Council of Ministers Resolution No. 524 dated 21 January 2025;

    d. Table of Violations and Penalties issued pursuant to Ministerial Resolution No. 75913 dated 03 December 2023 and updated pursuant to Ministerial Resolution No. 44558 dated 06 October 2024;

    e. Regulation of the Maritime Work Contract Statute issued pursuant to Ministerial Resolution No. 126322 dated 14 March 2025;

    f. Regulations for Agricultural Workers, Private Herdsmen, and those in similar roles issued pursuant to Ministerial Resolution No. 115919 dated 18 February 2025;

    g. Domestic Workers' Wage Protection - Electronic Service (launched by the MHRSD on 13 May 2024).

50. In addition, as discussed in **Section 5.1.1** above, the Kingdom of Saudi Arabia is seeking technical assistance from the ILO on the same issues in the Complaint. Among other things,

the programme agreed between the Kingdom of Saudi Arabia and the ILO focuses on "ensuring fair recruitment and labour mobility of migrant workers", "protecting the rights of domestic workers", "expanding migrant workers' access to fair judicial processes" and "strengthening occupational safety and health". [111]

51. The ILO itself has noted that the Kingdom of Saudi Arabia "has been exerting great efforts to support the creation of a modern economy and a labour market conducive to decent and productive job creation." [112] Indeed, the ILO has recognised that the Kingdom of Saudi Arabia "introduced various initiatives and policy reforms" and noted that further "review and assessment of their effectiveness", among additional reforms, will now be required. [113]

52. While these reforms are still underway, it cannot be found that the Kingdom of Saudi Arabia has "commit[ed] persistent and serious violations and has repeatedly refused to address them," [114] as is required for the establishment of a commission of inquiry. The reforms demonstrate that the Kingdom of Saudi Arabia is engaging in a meaningful way to address any potential inconsistencies with its obligations under the ILO conventions it has ratified.

53. Moreover, the Complaint itself is also almost entirely void of evidence in support of its factual allegations. As elaborated in detail **in Section 6.2** below, the Complaint is simply a compilation of highly speculative and general statements about labour conditions in the Kingdom of Saudi Arabia. Without any or sufficient evidence supporting an allegation, a commission of inquiry cannot find that the Kingdom of Saudi Arabia is failing to "secur[e] effective observance" of any of the ILO Conventions which it ratified. It is thus wholly premature for a commission of inquiry to consider the Complaint without evidence supporting the Complaint.

54. Overall, the Complaint is extremely premature and thus inadmissible. An ILO Commission of Inquiry cannot determine if the Kingdom of Saudi Arabia is "persistent[ly]" committing "serious violations" and "repeatedly refus[ing]" [115] to address them while reforms are still underway. Moreover, the facts that could potentially support any breaches have not yet been studied or made out in the Complaint. The situation the Complaint seeks to address thus may not even exist or come to exist. It would, therefore, be premature to consider the Complaint before such reforms are complete and sufficient evidence is gathered to substantiate the factual allegations that have been made.

5.2. The whole Complaint is not legally receivable because it fails to meet the legal threshold

5.2.1. The Complaint is not receivable in full because it alleges violations of conventions the Kingdom of Saudi Arabia has not ratified and general international labour standards

55. The Governing Body has already recognised that the Complaint is not receivable in relation to two conventions mentioned in the Complaint that the Kingdom of Saudi Arabia has not ratified, namely Convention No. 143 and Convention No. 155. [116]

56. For the avoidance of doubt, for the same reasons, the Complaint is not receivable also in relation to the other unratified conventions and any international labour standard that the Complaint mentions, [117] if the Complaint is purporting to initiate the procedure under Article 26 of the ILO Constitution for allegations of non-observance of those instruments.

57. Complaints under Article 26 of the ILO Constitution are only receivable when they concern allegations under conventions that the relevant State has ratified. Article 26(1) of the ILO Constitution states:

> Any of the Members shall have the right to file a complaint with the International Labour Office if it is not satisfied that any other Member is securing the effective observance of **any**

> **Convention which both have ratified in accordance with the foregoing articles**. [118] (Emphasis added.)

58. The wording of the ILO Constitution is clear: a complaint under Article 26 of the ILO Constitution must concern a ratified convention and not either unratified ILO conventions or general labour standards.

59. In addition, ILO guidance states that one of the "receivability criteria" of Article 26 complaints is that "the member State against which the complaint is filed must have ratified the Convention that is the subject of the complaint". [119]

60. To the Kingdom of Saudi Arabia's knowledge, the ILO has not to date deemed receivable a complaint under Article 26 of the ILO Constitution against a State which has not ratified a convention.

61. The ILO's decisions show that it would not have competence over a complaint concerning an unratified convention. For example, the ILO Governing Body decided a complaint against Malta was not receivable in circumstances where it had not ratified one of the conventions in the complaint, although the Governing Body cited other grounds for why the complaint was not receivable in its entirety. [120] By way of another example, in a complaint procedure concerning Zimbabwe, an ILO Commission of Inquiry underlined that it "was competent only to examine Zimbabwe fulfilment of the obligations it undertook upon ratifying Conventions Nos 87 and 98" and therefore other matters "would be outside its competence". [121]

62. Similarly, the ILO deems not receivable allegations against States in other supervisory procedures before the ILO concerning unratified conventions. [122] For example, the ILO did not set up a tripartite committee to examine allegations under Convention No. 155, [123] even though a complainant made allegations under Convention No. 155 against the Kingdom of Saudi Arabia in 2024.

63. It would be contrary to international law to allow procedures against the Kingdom of Saudi Arabia in relation to an unratified convention. This is textbook international law: a State is not bound to answer to a treaty that it has not ratified. [124] The Kingdom of Saudi Arabia is not bound to apply these conventions upon adoption by the ILO. It is only bound when it ratifies and registers its ratification with the Director-General of the ILO. [125]

64. Opening a complaint procedure under Article 26 of the ILO Constitution concerning conventions unratified by ILO Member States would also be contrary to the ILO Constitution. As previously stated, the ILO Constitution expressly provides that the Complaint procedure under Article 26 only applies with respect to "any Convention which both have ratified in accordance with the foregoing articles". [126] In addition, Article 5 of the ILO Constitution, concerning "obligations of members in respect of conventions", clarifies that where convention is not ratified by a member State, "no further obligation shall rest upon the Member except that it shall report to the Director-General of the International Labour Office, at appropriate intervals as requested by the Governing Body, the position of its law and practice in regard to the matters dealt with in the Convention". [127] Applying an Article 26 complaint procedure to unratified conventions would thus be incompatible with the ILO Constitution.

65. The Kingdom of Saudi Arabia has ratified many ILO conventions. However, allegations in the Complaint concerning any conventions not ratified by the Kingdom of Saudi Arabia or general international labour standards are not receivable.

5.2.2. The Complaint is not receivable in full as it raises allegations that do not allege a violation of an ILO convention

66. The Complaint raises matters that are not accompanied by any assertion that the Kingdom of Saudi Arabia has failed to secure effective observance of any ILO convention at all. Those parts of the Complaint are therefore not receivable.

67. A complaint procedure under Article 26(1) of the ILO Constitution is only validly initiated if it alleges violations of specific ILO conventions that a State has ratified. Article 26(1) requires that a complaint states that "it is not satisfied that any other Member is securing the effective observance of any Convention which both have ratified". [128] ILO guidance further notes that one of the "receivability criteria [that] need to be met for the Governing Body to initiate its consideration of the complaint" is that:

> the complaint must provide an indication that the complainant 'is not satisfied' that the member State against which the complaint is filed is 'securing the effective observance' of a Convention it has ratified. [129]

68. The ILO Governing Body therefore deems complaints non-receivable when they do not allege a violation of a particular ILO convention in a Member State. In the complaint concerning Austria and other European Union Members States, the complainant alleged that European Union trade restrictions had negative consequences for the economy of Belarus. Although referring to two ILO conventions in the complaint, the ILO Governing Body noted that that complaint "does not allege that any of the 27 EU Member States has failed to secure the effective application of Conventions Nos 111 and 122 within its jurisdiction". [130] The ILO Governing Body thus considered that the complaint "fail[ed] to state a valid cause of action under article 26(1)" of the ILO Constitution. [131] It concluded that "[a]s a consequence, the complaint does not appear to fulfil the requirements set out in article 26 of the ILO Constitution for receivability". [132]

69. The Complaint fails to comply with this legal threshold. Outside of the allegations regarding Convention Nos. 29, 111, 143 and 155 on pages 3 to 4 (which are, in any case, not sufficiently evidenced or proven),[133] the Complaint contains purported factual statements without alleging that the Kingdom of Saudi Arabia has violated any specific ILO convention it has ratified. The Complaint:

    a. alleges that the Kingdom of Saudi Arabia has violated "international labour standards" [134] without specifying which ones;

    b. refers to the 1998 Declaration on Fundamental Principles and Rights at Work and its Follow-up, [135] an instrument which is not subject to a complaint procedure under Article 26 of the ILO Constitution as it is not a convention ratified by the Kingdom of Saudi Arabia;

    c. lists alleged "specific cases" [136] of, among others, "[p]hysical and [p]sychological [a]buse" [137] without stating which obligations the Complainants consider that the Kingdom of Saudi Arabia has failed to observe (and, in fact, without specifying any relevant ILO convention in relation to these allegations); and

    d. includes a section on purported "recent developments since 112th ILC 2024" without stating which obligations the Complainants consider that the Kingdom of Saudi Arabia has failed to observe (and, in fact, without specifying any relevant ILO convention in relation to these allegations). [138]

70. None of the above-mentioned parts of the Complaint satisfy the legal threshold of indicating that the Complainants "'[are] not satisfied' that the member State against which the complaint

is filed is 'securing the effective observance' of a Convention it has ratified". [139] Those parts of the Complaint are therefore not receivable.

6. EVEN IF THE COMPLAINT IS RECEIVABLE AND ADMISSIBLE, THE COMPLAINT SHOULD BE DISMISSED ON THE MERITS

71. Even if the Complaint is both receivable and admissible, [140] which the Kingdom of Saudi Arabia disputes, the Complaint should be dismissed on the merits because: (a) the Kingdom of Saudi Arabia is engaging with the ILO and the ITUC to address the allegations raised in the Complaint (see **Section 6.1** below); (b) the allegations in the Complaint are not sufficiently evidenced or proved (see **Section 6.2** below); and (c) the unevidenced factual allegations in the Complaint do not rise to a violation of the relevant ILO conventions cited by the Complainants in the Complaint (see **Section 6.3** below).

6.1. The Kingdom of Saudi Arabia is engaging with the ILO and the ITUC to address the allegations raised in the Complaint

72. As discussed above, the Kingdom of Saudi Arabia had already entered into a Programme of Cooperation with the ILO over the last few years before the Complaint was made (see **Section 3**). In December 2022, the programme entered its second phase [141] and it is currently in its third phase as of June 2025. This constitutes the Kingdom of Saudi Arabia securing the effective observance of the relevant ILO conventions and the ILO Governing Body should close the Complaint procedure.

73. In addition, separately, on the ILO's request, after the filing of the Complaint , the Kingdom of Saudi Arabia has in good faith engaged in discussions with the ILO and the ITUC to resolve the matters raised by the Complaint. All parties have been engaged in facilitated and good faith dialogue with the aim of resolving fully, or providing a blueprint to resolve, all issues in the Complaint. Through this process, the Kingdom of Saudi Arabia is securing the effective observance of the relevant ILO conventions and the ILO Governing Body should close the Complaint procedure.

74. It is the practice of the ILO Governing Body to close Article 26 complaint procedures when either (i) the State engages with a complainant (such as by engaging in good faith negotiations concerning a complaint's subject matter) or (ii) the ILO considers that progress has been made toward addressing matters raised in the complaint or are supervised by the ILO (such as through a technical cooperation programme with the ILO). This is even if the matters are not yet fully resolved. For example, the ILO Governing Body discontinued the complaint procedure concerning Nigeria after ILO supervisory bodies noted that "some substantial progress" was made by Nigeria following its cooperation with an ILO direct contact mission. [142] Notably, the ILO's supervisory bodies considered that "there were discrepancies between the law and ratified Conventions which still had to be remedied" but the "matters considered … to remain outstanding have now been referred to the Committee of Experts within the framework of its regular supervision of ratified Conventions". [143]

75. A closure of the Article 26 complaint procedure fits with the purpose of the procedure in the ILO Constitution. Article 26 of the ILO Constitution allows ILO members to bring complaints where they are concerned that a State is not "securing the effective observance of any Convention" that State has ratified. [144] Where a Commission of Inquiry is appointed, its role is to draft a report on the complaint "containing such recommendations as it may think proper as to the steps which should be taken to meet the complaint". [145] However, where a government, the complainant and the ILO are already engaged in good faith dialogue and are

taking steps to resolve the matter, continuation of the procedure serves no useful purpose. The ILO Governing Body has recognised this in past practice, including in the procedures concerning Qatar, Guatemala and Bahrain. [146] It closed Article 26 procedures concerning those States precisely because engagement with the complainants and technical cooperation between the State and the ILO made a Commission of Inquiry unnecessary.

76. The Kingdom of Saudi Arabia is already engaging with the ITUC and the ILO. Separately, it is also implementing a technical cooperation programme with the assistance of the ILO. Both of these actions make the Article 26 complaint procedure no longer fit for purpose.

77. In light of the above, the Kingdom of Saudi Arabia is securing the effective observance of the conventions mentioned in the Complaint. The ILO Governing Body should therefore close the Complaint procedure.

6.2. The allegations in the Complaint are not sufficiently evidenced or proved

78. The Complaint does not establish that the Kingdom of Saudi Arabia failed to comply with any of the ILO conventions, including those which it has ratified. Instead, it presents speculative and unsubstantiated allegations which are immaterial to supporting an allegation of the Kingdom of Saudi Arabia's non-observance with its obligations under the relevant ILO conventions. A Commission of Inquiry under Article 26 is the highest-level investigative procedure, reserved for accusations concerning "persistent and serious violations" that a State has "repeatedly refused to address". [147] It cannot be used as a fishing expedition into unevidenced and speculative allegations. [148]

79. The allegations made in the Complaint do not meet the required standard to hold the Kingdom of Saudi Arabia in breach of its international obligations under the ILO conventions. Under Article 12 of the Articles on the Responsibility of States, a breach of a State's international obligation occurs when "an act of that State is not in conformity with what is required by that obligation, regardless of its origin or character." [149] The standard of proof in this respect, as applied by international judicial or quasi-judicial bodies, is generally that of preponderance of evidence or reasonable grounds to believe. [150] The ILO Governing Body must therefore be satisfied that there are at least reasonable grounds to believe that the Kingdom of Saudi Arabia failed to "secur[e] the effective observance of" any of the Conventions that it has ratified. [151] The allegations made in the Complaint and the limited evidence provided in support of them do not meet this standard.

80. First, the allegations made in the Complaint are wholly unsupported by documentary or other evidence. The Complaint is predominantly composed of general and speculative unsubstantiated statements about labour conditions in the Kingdom of Saudi Arabia. These statements are not backed with references or any supporting documentation. Indeed, the Complaint only attaches one annex, [152] which does not in any event support the sweeping allegations made in the Complaint.

81. The Complaint puts forward three forms of purported evidence, none of which substantiate the allegations being made. These are:

    a. alleged "specific cases that were monitored, investigated and reported." [153] There is no documentary or other evidence provided to substantiate the occurrence of these purported "specific cases". [154] They are also referred to in vague and speculative terms and predominantly based on alleged "reports" from certain groups of workers. As expanded on below, they also do not show, or even purport to show, the Kingdom of Saudi Arabia's non-compliance with its obligations under the ILO conventions that it has

ratified. These general "cases", which are themselves wholly unsubstantiated with evidence, cannot prove any of the allegations in the Complaint;

b. references to two news articles [155] and five articles from non-governmental organisations. [156] As shown in more detail in the subsection below, these sources do not substantiate the allegations in the Complaint. The reports themselves are speculative and unsupported by documentary evidence. As recognised by prominent judicial authorities, reports from Amnesty International and other non-governmental organisations should not be relied on as evidence if their conclusions are not themselves sourced or properly verified and substantiated by other sources. [157] The reports from Amnesty International and other non-governmental organisations in the Complaint does not provide references or otherwise sufficiently substantiate their conclusions. There is also no evidence in the Complaint that the conclusions in these reports have been verified. Moreover, the articles deal with content that is unrelated to the Kingdom of Saudi Arabia's compliance with the relevant ILO conventions; and

c. purported anonymous testimonies from migrant workers in the Kingdom of Saudia Arabia who were nationals of different African countries. [158] The Complaint does not provide the actual testimonies of these individuals. The allegations in these anonymous testimonies are also unparticularised. Moreover, as expanded on below, the fact that some individuals may have experienced wage theft or other forms of mistreatment by employers or recruitment agencies in the Kingdom of Saudi Arabia does not prove that the Kingdom of Saudi Arabia breached its obligations under any ILO conventions that it ratified. The sample of anonymous testimonies is simply too small to show any pattern of exploitation in the Kingdom of Saudi Arabia, let alone to the level that would incur the liability of the Kingdom of Saudi Arabia under the ILO conventions. The experiences of a small number of migrant workers do not show "persistent and serious violations" of a State's obligations under the ILO conventions which it has ratified. [159]

82. Overall, the Complaint requires the ILO Governing Body simply to take its word that the factual allegations it refers to are indeed occurring. A complaint, however, must be substantiated with evidence. [160] The Complaint at issue does not include such evidentiary support. It therefore cannot establish any breach of the Kingdom of Saudi Arabia's obligations under the ILO conventions.

83. Second, even if the allegations in the Complaint were substantiated with evidence, *quod non*, the Complaint does not prove that the Kingdom of Saudi Arabia violated any of its commitments under the ILO conventions that it ratified. The Complaint is predominantly a list of concerns and alleged "specific cases" [161] involving the treatment of workers in the Kingdom of Saudi Arabia. It does not address the legislative framework or specific acts or omissions by the Kingdom of Saudi Arabia. The Complaint lists certain ILO conventions and states that there has been a "violation" of these conventions. However, it does not actually identify, let alone demonstrate, what the violation is. Overall, it does not prove that the Kingdom of Saudi Arabia has failed to comply with any of the ILO conventions it lists.

84. The following sections explain one-by-one how each allegation made in the Complaint is not sufficiently evidenced or proved. Allegations made with respect to conventions which the Kingdom of Saudi Arabia has not ratified are not responded to below, as these allegations are not receivable (see **Section 5.2.1**).

6.2.1. Alleged violation of Convention No. 29: the Forced Labour Convention

85. The Complaint's allegation that the Kingdom of Saudi Arabia violated the Convention No. 29 is not sufficiently evidenced or proved. In support of this allegation, the Complaint: (i) notes generally different circumstances which may constitute a breach of Convention No. 29; [162] (ii) makes speculative and unsubstantiated statements about forced labour in the Kingdom of Saudi Arabia; [163] (iii) refers to some alleged and unproven "specific cases" related to "wage theft and exploitation" [164] of workers in the Kingdom of Saudi Arabia; [165] and (iv) provides eleven alleged anonymous witness testimonies dealing with wage theft or other forms of forced labour. [166] As explained below, none of the above demonstrate that the Kingdom of Saudi Arabia violated its obligations under Convention No. 29.

86. First, the section of the Complaint titled a "violation of ILO Convention No. 29" [167] does not reference any instances of forced labour in the Kingdom of Saudi Arabia, let alone any acts or omissions of the Kingdom of Saudi Arabia which would result in a breach of Convention No. 29. The section only generally outlines different circumstances which the Complainants consider constitute a breach of Convention No. 29. [168] It notes, for example, that "physical and psychological abuse" suffered by African migrant workers is a serious breach of Convention No. 29 against forced labour" and that "denying rest times and working long hours without sufficient pay is exploitation". [169] It is worth noting that there are no references to Convention No. 29 itself here or an identification of which articles are being triggered. More to the point, however, this section does not identify any instances of forced labour in the Kingdom of Saudi Arabia or how the Kingdom of Saudi Arabia has failed to comply with its obligations under Convention No. 29.

87. Second, the Complaint then makes unsubstantiated and speculative allegations about forced labour generally in the Kingdom of Saudi Arabia. [170] It purports that "physical and psychological abuse is prevalent" in the Kingdom of Saudi Arabia [171] and that "many people live in inhumane conditions". [172] It also makes some vague references to the *Kafala* (sponsorship) (the "**Kafala**") system. It suggests that under the *Kafala* system "African workers have no flexibility to change employers, no right to leave the country without authorisation and no remedy if they are harmed". [173] These allegations are wholly unsupported by evidence. They are also broad and highly speculative. As set out in the subsequent paragraphs, these sweeping allegations are not sufficiently supported by the alleged "specific cases" [174] and anonymous witnesses' testimonies in the Complaint. Nor are they elsewhere substantiated in the Complaint.

88. Third, the Complaint notes six "specific cases" of alleged forced labour and human trafficking [175] and seven alleged instances of "physical and psychological abuse" [176] that occurred towards specific groups (such as "Nigerian migrant workers" [177]) in the Kingdom of Saudi Arabia. There is no evidence to prove these "specific cases". [178] They are also framed in vague terms such as "Ghanaian migrant workers were subjected to forced labour in Riyadh." [179] As a matter of fact, these alleged "specific cases" [180] are unsubstantiated.

89. Finally, all of the eleven purported witness testimonies concern allegations of forced labour in the Kingdom of Saudi Arabia. The anonymous testimonies are vague and highly speculative. Moreover, as noted above, the fact that some individuals may have experienced wage theft or other forms of labour exploitation in the Kingdom of Saudi Arabia does not prove that the Kingdom of Saudi Arabia breached its obligations under the ILO conventions that it ratified. [181] In addition, the MHRSD which is directly responsible for providing support to migrant workers and assistance in dealing with their complaints through the labour dispute resolution offices, has not, to its knowledge, received these complaints. In any event, the sample of anonymous

testimonies is simply too small to show any pattern of labour exploitation in the Kingdom of Saudi Arabia.

90. Moreover, even if factually proved, *quod non*, these alleged "specific cases" [182] and alleged witness testimonies do not demonstrate a violation of the Kingdom of Saudi Arabia's obligations under Convention No. 29. Convention No. 29 requires States that have ratified the Convention to "suppress" [183] and "penalise" [184] the use of forced labour. It is not sufficient to allege isolated examples of forced labour while working in the Kingdom of Saudi Arabia to show a breach of Convention No. 29. It does not prove that the Kingdom of Saudi Arabia has failed to "suppress" or "penalise" forced labour as required by Convention No. 29. Indeed, as demonstrated below in **Section 6.3.1**, the Kingdom of Saudi Arabia has in place a robust legal framework and has taken significant measures to ensure compliance with Convention No. 29.

6.2.2. Alleged violation of Convention No. 95: the Protection of Wages Convention

91. The Complaint alleges that the Kingdom of Saudi Arabia is not in compliance with Convention No. 95. It does not, however, substantiate this allegation. The Complaint merely (a) explains general types of activities which may result in a violation of Convention No. 95, including "wage theft" and "forced labour" without any reference to any violations within the Kingdom of Saudi Arabia; [185] (b) makes vague references to the activities of the Kingdom of Saudi Arabia purportedly related to forced labour and wage theft that are unsupported by evidence; (c) lists some alleged "specific cases that were monitored, investigated and reported" where groups purportedly experienced wage theft and economic exploitation; [186] and (d) lists anonymous testimonies that make reference to underpaid wages from private actors. [187] At no point, however, does the Complaint show that the Kingdom of Saudi Arabia breached Convention No. 95.

92. First, the Complaint outlines general types of activities that fall within the scope of Convention No. 95, which do not substantiate a claim that the Kingdom of Saudi Arabia has not complied with Convention No. 95. It merely notes:

> Wage theft, which involves withholding payments for months at a time or paying workers a fraction of what was agreed upon, violates Convention No. 95, which requires that workers be paid fairly and on time for their labour. Wage denial, particularly when workers are forced to work excessive hours, violates the right to fair remuneration. [188]

93. Second, the Complaint puts forward speculative statements concerning alleged wage theft and forced labour in the Kingdom of Saudi Arabia without reference to any evidence. It notes that:

> The situation of migrant workers in Saudi Arabia, including many from Africa, who have been deprived of their wages for extended periods, is dire. The workers, employed in various sectors, face severe financial hardships due to delayed or unpaid wages. The Saudi government's weak enforcement of labour laws and the exploitation by employers exacerbate the issue … [189]

And that:

> [wage theft and wage denial] are exacerbated by the fact that migrant workers lack access to legal redress to enforce their rights, which Convention No. 95 seeks to prevent by requiring fair wage treatment. [190]

94. These statements are made without any references to documentary or other evidence. There is no evidence throughout the Complaint showing a "weak enforcement of labour laws" by the Kingdom of Saudi Arabia. The broad allegations concerning wage theft and wage denial in the Kingdom of Saudi Arabia are also unsubstantiated. For the reasons set out below, the alleged "specific cases" [191] or anonymous witness testimonies concerning wage theft do not prove such allegations. Nor are they elsewhere substantiated in the Complaint.

95. Third, the Complaint lists some alleged instances of what it refers to as "wage theft and economic exploitation" of groups of African workers in the Kingdom of Saudi Arabia. [192] These purported examples are unparticularised and wholly unsupported with documentary or other evidence. [193] They are, thus, not proven as a matter of fact. [194]

96. The Complaint also provides five purported anonymous testimonies with allegations of unpaid wages. [195] The anonymous testimonies are vague and speculative. For example, a testimony from the "Worker AS – Ugandan Worker" simply states that "I was forced to work long hours without pay." [196] Another from "Worker X – the Somali Worker" notes that "[m]y wages were withheld, and my movements were restricted". [197] There are no details or information surrounding the purported "unpaid" or "withheld" wages. There is also no evidence to show the alleged "unpaid" or "withheld" wages. Most importantly, there is no claim that (a) Saudi law permits unpaid or withheld wages (and it does not); [198] or (b) a Saudi State entity knew of or recklessly failed to investigate these cases. [199] Moreover, six alleged "specific cases" [200] would not suffice in themselves to qualify as systemic nonpayment of wages. In addition, the MHRSD, which is directly responsible for providing support to migrant workers and assistance in dealing with their complaints through the labour dispute resolution offices, has not, to its knowledge, received any complaints.

97. Even if factually proven, *quod non*, these alleged "specific cases" [201] and alleged witness testimonies do not show that the Kingdom of Saudi Arabia violated Convention No. 95. As expanded on in **Section 6.3.2** below, the Kingdom of Saudi Arabia is not required to guarantee that wage theft never occurs in the Kingdom of Saudi Arabia. The Kingdom of Saudi Arabia is required to take measures to ensure "efficient control", "appropriate sanctions" and "means of redress [for] injury caused" by wage theft and other forms of wage exploitation. [202] The identification of some unparticularised instances [203] where certain groups [204] or individuals [205] in the Kingdom of Saudi Arabia have had their wages delayed or otherwise withheld does not amount to non-compliance with Convention No. 95. It does not show that the Kingdom of Saudi Arabia has failed to take concrete steps to eliminate forced or compulsory labour, as required by the Convention No. 95.

98. The Complaint thus does not prove that the Kingdom of Saudi Arabia has breached its obligations under Convention No. 95.

6.2.3. Alleged violation of Convention No. 111: the Discrimination (Employment and Occupation) Convention

99. The Complaint's allegation that the Kingdom of Saudi Arabia violated Convention No. 111 is not substantiated. The allegations regarding discrimination towards migrant workers are sparse. The Complaint generally and without evidence suggests that migrant workers in the Kingdom of Saudi Arabia face "discrimination … on account of their status as migrant workers [as well as] because of their race and economic background." [206] None of these allegations prove that the Kingdom of Saudi Arabia failed to comply with Convention No. 111.

100. First, the allegations regarding "discrimination" in the Kingdom of Saudi Arabia are not supported by any documentary or other evidence. The Complaint notes generally that "[t]he racial discrimination experienced by African migrant workers in Saudi Arabia violates Convention No. 111". [207] It also states that there is "differential treatment of African workers in terms of salaries, working conditions and access to fundamental rights." [208] It does not provide evidence to support these broad and speculative allegations. Some of the witness anonymous testimonies imply that these individuals experience some form of discrimination. [209] A couple

of examples of personal experiences of discrimination, however, do not prove a persistent issue in the Kingdom of Saudi Arabia of discrimination, as defined in Convention No. 111. [210]

101. In any event, the allegations do not show that the Kingdom of Saudi Arabia breached its obligations under Convention No. 111. The Complaint misinterprets the scope of obligations of States under Convention No. 111. It purports that States party to Convention No. 111 are obliged to guarantee "all workers be treated fairly and without discrimination". [211] As demonstrated in **Section 6.3.3** below, this is not, however, what is required by States under Convention No. 111. [212] Rather, Convention No. 111 requires that a national policy, among other measures, are put in place by States that are parties to the Convention to prevent discrimination, as defined in Article 1. The Complaint does not show that the Kingdom of Saudi Arabia failed to adopt a "national policy" or implement measures to prevent discrimination, as required by Convention No. 111. It thus does not establish a breach of Convention No. 111.

102. In any event, as demonstrated **Section 6.3.3** below, the Kingdom of Saudi Arabia has in place a robust legal framework and has taken significant measures to ensure compliance with Convention No. 111. The Kingdom has laid a strong legal and policy foundation for social justice. This commitment is reflected in constitutional principles, international obligations, national strategies, and progressive labour reforms. For example:

    a. the Kingdom introduced a national policy aimed at promoting equality of opportunity and treatment in employment and occupation. [213] This policy is a major stride toward a discrimination-free, inclusive labour market and directly supports Vision 2030's socioeconomic transformation. The policy provides a comprehensive framework to promote equal access to employment and protect against discrimination on any basis that may impede fair treatment in the workplace. It applies to all individuals governed by the Labour Law and Civil Service Law, encompassing public sector institutions, private companies, and third-party entities. Objectives of the Policy include:

        i. Developing Policies and Regulatory Mechanisms: the policy sets out to establish, review, and enhance national systems that explicitly define and prevent discriminatory practices in employment and occupation. This includes adopting institutional frameworks and legal tools to uphold fairness.

        ii. Empowering Underrepresented Groups: the Policy introduces programs and initiatives for individuals with fewer opportunities. The policy targets individuals who face greater barriers to labour market participation by designing targeted programs, procedural reforms, and institutional initiatives. This policy mandates inclusive practices and reporting standards and reflects the Kingdom of Saudi Arabia's evolving dedication to fair, merit-based participation in economic life.

    b. The Basic Law of Governance firmly establishes the principle of equality:

        i. Article 8: "Governance in the Kingdom of Saudi Arabia is based on justice, consultation, and equality in accordance with Islamic Sharia".

        ii. Article 28: "The state shall facilitate employment opportunities for every capable individual and shall enact regulations that protect both the worker and the employer".

    c. In addition, the Kingdom is a party to the International Convention on the Elimination of All Forms of Racial Discrimination (ICERD), adopted by the United Nations in 1965. As a signatory, the Kingdom of Saudi Arabia affirms its commitment to:

        i. Prohibit and eliminate racial discrimination in all its manifestations;

ii. Guarantee equality before the law, regardless of race, descent, or ethnic origin;

iii. Condemn ideologies and organizations based on racial superiority;

iv. Promote policies that foster racial equality and integration.

d. Article 3 of the Labour Law prohibits discrimination based on gender, age, disability or any other basis. Furthermore, regulations and decisions stemming from the Labour Law mandate equal wages for workers in the same job and grade, irrespective of gender, age, disability or any other discriminatory factor. Violations of this provision are subject to fines and penalties, including the closure of the breaching entity.

6.2.4. Allegations concerning the Kingdom of Saudi Arabia and Somalia agreements

103. The Complaint alleges that two agreements entered into by the Kingdom of Saudi Arabia and the Government of Somalia "violat[e] ILO Standards." [214] The Complaint fails to explain or prove how the act of entering into these agreements is a breach of the Kingdom of Saudi Arabia's obligations under the ILO conventions which it has ratified. The Complaint alleges and notes concern that certain recommendations from the ILO were not followed in these agreements. [215]

104. These allegations are not substantiated. The Complaint annexes the ILO's recommendations, [216] but it does not produce the agreement itself. In any event, it does not demonstrate how the alleged non-compliance with ILO's obligations results in a breach of the Kingdom of Saudi Arabia's obligations under the conventions which it has ratified. The Complaint refers generally to these agreements as "violating ILO standards". [217] It does not, however, note or substantiate which ILO standards are being violated.

105. The Complainants may have concerns regarding these agreements, as shown by the news article attached to the Complaint titled "Somalia: ITUC condemns exploitative labour agreements with Saudi Arabia". [218] However, these concerns do not amount to a breach of the ILO conventions that the Kingdom of Saudi Arabia has ratified. Even the Complaint itself appears to acknowledge that these do not amount to a breach of any of the Kingdom of Saudi Arabia's obligations. Its only reference to the ILO standards is a suggestion that the agreements "demonstrat[e] [an] intention to negate the ILO and its standards". [219] Even by the Complaint's own estimation, the act of entering into the agreements is thus, at most, an "intention" of non-compliance. As discussed in **Section 5.1.3** above, for Article 26 complaints, breaches are established "when a member state is accused of committing persistent and serious violations and has repeatedly refused to address them". [220] A mere "intention" to commit a breach is far from meeting this standard.

106. In any event, the Complaint does not prove that such an intention exists. References to an "intention" are speculative and unsubstantiated. They are also inconsistent with the many steps that the Kingdom of Saudi Arabia has been taking to improve labour standards of migrant workers, as noted in **Section 3** above.

6.2.5. Allegations concerning the *Kafala* system

107. The Complaint makes some vague references to the Kafala system in the Kingdom of Saudi Arabia. It claims that "the vast majority of [African migrant] workers are victims of the Kafala system, [which is] a legally sanctioned structure that gives employers, who are protected and facilitated by the Saudi government, unchecked control over migrant workers' movement, employment and residency". [221] It says that under the *Kafala* system, "African workers have no flexibility to change employers, no right to leave the country without authorisation and no

remedy if they are harmed". [222] These allegations are highly speculative. They are made without any documentary or other evidence. The Complaint also does not show how its broadly framed concerns with the *Kafala* system result in any breach of the ILO Conventions which the Kingdom of Saudi Arabia has ratified. By contrast, the Kafala system has been replaced by a modernized labour mobility framework that allows migrant workers to change employers, obtain exit and re-entry permits, and manage their employment contracts without the previous restrictive dependencies. MHRSD has issued binding instruments giving effect to job mobility and e-visa services. [223]

108. In addition, the allegations with respect to the *Kafala* system fail to appropriately take into account the extensive reforms in the Kingdom of Saudi Arabia and current legislative framework in place which specifically protects the rights of migrant workers to move between employers and the conditions in which they live and work while in the Kingdom of Saudi Arabia. The Complaint acknowledges "recent reforms" in the Kingdom of Saudi Arabia, but suggests that "despite [such] reforms, domestic workers remain excluded from Saudi labour laws, leaving them vulnerable." [224] This allegation is made without any evidentiary support. The Complaint does not even discuss, let alone engage with, these reforms. In fact, as set out in detail in **Section 3** above, the legislative reforms ensure the rights of migrant workers, including domestic workers, to move between employers. They also safeguard decent working and living conditions of migrant workers, including domestic workers, in the Kingdom of Saudi Arabia. [225]

109. The broad and unevidenced allegations regarding the *Kafala* system thus do not prove any breach of the Kingdom of Saudi Arabia's obligations under the relevant ILO Conventions. On the contrary, the reforms reflected in ministerial instruments and official guidance (including job mobility without employer consent at contract expiry, conditional mobility during the term, and electronic issuance of exit/re-entry and final-exit visas) signify the legal and structural dismantling of the former kafala system and the establishment of a contract-based labour framework supported by enforceable rights and obligations.

6.2.6. Allegations concerning the Kingdom of Saudi Arabia's purported declining to engage in social dialogue

110. The Complaint also alleges that the Kingdom of Saudi Arabia has "decline[d] to engage in social dialogue". This allegation, however, is wholly unsubstantiated.

111. The Complaint refers to one alleged instance where the Kingdom of Saudi Arabia did not attend a "meeting with African trade unions collectively on 16–17 April 2024 in Winhoek, Namibia." [226] Based on this one purported instance, it goes on to claim that the Kingdom of Saudi Arabia "favour[s] unilateralism and ha[s] an undisguised disdain for trade unions, especially those in Africa, as these unions will ask uncomfortable questions about workers' rights". [227] Of course, there is no requirement for a State to agree to a meeting requested by a trade union in a third State. As noted in **Section 4** above, at around the same time, the Kingdom of Saudi Arabia engaged in good-faith discussions with both the ILO and the ITUC with a view to addressing the allegations raised, thereby constantly providing a framework for their resolution. Further, there is no evidence to support the Kingdom of Saudi Arabia's purported non-participation in this "meeting". In addition, it is a wild generalisation to suggest on the basis of this one purported instance that the Kingdom of Saudi Arabia "favour[s] unilateralism" and has an "undisguised disdain for trade unions, especially those in Africa." [228]

112. In any event, non-participation in "social dialogue" does not prove a breach of any of the Kingdom of Saudi Arabia's obligations under the ILO conventions which it has ratified. [229] Nor

does the Complaint purport that it would. There is no reference in this section to any of the ILO conventions or the Kingdom of Saudi Arabia's commitments thereunder.

113. Moreover, the Kingdom of Saudi Arabia is in any event engaging in meaningful "social dialogue" with the trade unions regarding their concerns. Such engagement is set out in, for example, in **Section 4**.

6.2.7. Allegations concerning the lack of domestic remedy and enforcement

114. The allegations in the Complaint that the Kingdom of Saudi Arabia has "weak enforcement of [its] labour laws" are unsubstantiated.

115. The Complaint makes broad and sweeping statements about enforcement of labour laws in the Kingdom of Saudi Arabia which are not backed by any evidence. It alleges that the Kingdom of Saudi Arabia has a "weak enforcement of labour laws" [230] and calls for "stricter enforcement of labour rights". [231] It further suggests that "migrant workers lack access to legal redress to enforce their rights". [232] The Complaint provides no evidence in support of these allegations. Again, that some individuals in the Kingdom of Saudi Arabia may have experienced mistreatment by their employers, as suggested by the purported "specific cases" and anonymous testimonies in the Complaint does not itself prove that the Kingdom of Saudi Arabia has a "weak enforcement of labour laws". The Complaint notes one instance of purported sexual abuse that was allegedly not investigated by the authorities in the Kingdom of Saudi Arabia. [233] There is no evidence provided to support these allegations. In any event, one instance is not sufficient to demonstrate the general proposition that the Kingdom of Saudi Arabia has a "weak enforcement of labour laws". [234]

116. Overall, the Complaint appears to be a compilation of broadly phrased and unsubstantiated allegations regarding labour standards in the Kingdom of Saudi Arabia. It does not prove that the Kingdom of Saudi Arabia has failed to comply with its obligations under any ILO conventions which it has ratified. In accordance with Article 26 of the ILO Constitution, there is no basis for a Commission of Inquiry to investigate this Complaint in absence of a failure by the Kingdom of Saudi Arabia to "secur[e] … effective observance" of any of the conventions it has ratified. [235]

6.3. The unevidenced factual allegations in the Complaint do not rise to a violation of the relevant ILO conventions cited by the Complainants in the Complaint

117. The allegations in the Complaint do not, as a matter of law, even potentially constitute a violation of any ILO convention in the Complaint. This is because the allegations in the Complaint do not fall within the scope of conduct that is required or prohibited by the relevant ILO conventions. In addition, the Complaint does not establish that there are reasonable grounds to believe that the Kingdom of Saudi Arabia did not fulfil its obligations under these conventions. In particular, it fails to take into account the Kingdom of Saudi Arabia's labour law framework regulating the working conditions of migrant workers and the measures it has enacted to ensure compliance with its domestic legislation and to offer mechanisms of redress.

118. Allegations made with respect to conventions which the Kingdom of Saudi Arabia has not ratified are not responded to below, as these allegations are not receivable (see **Section 5.2.1**).

6.3.1. Alleged violation of Convention No. 29: the Forced Labour Convention

119. The Complaint alleges that the Kingdom of Saudi Arabia has failed to comply with Convention No. 29. As explained above, these allegations are factually unsubstantiated. They also do not rise to a violation of Convention No. 29.

120. It is unclear precisely which allegations in the Complaint are meant to establish a breach of Convention No. 29. The Complaint makes some reference to the *Kafala* system which it, presumably, considers not in conformity with Convention No. 29. It also outlines alleged "specific cases" [236] and alleged anonymous testimonies [237] of migrants in the Kingdom of Saudi Arabia who experienced some form of forced labour, allegedly through threats of deportation, imprisonment or physical harm if they attempted to leave their jobs; [238] confiscation of their passports to prevent them from leaving; [239] being forced to work long hours without rest or breaks; [240] and deception with respect to the types of work they would be undertaking. [241] These unsubstantiated allegations do not give rise to a breach of Convention No. 29.

121. The substantive obligations of States under Convention No. 29 are established in Article 1 and Article 25. Under Article 1, States are required to "suppress the use of forced or compulsory labour in all its forms within the shortest possible period." Article 25 further requires that the "illegal exaction of forced or compulsory labour shall be punishable as a penal offence, and it shall be an obligation on any Member ratifying this Convention to ensure that the penalties imposed by law are really adequate and are strictly enforced."

122. The committee set up to examine the representation alleging non-observance by Qatar of Convention No. 29 explained the obligations on States arising from Article 1 as follows:

> [b]y ratifying the Convention, States are under the obligation to adopt measures, in law and practice, with a view to ensuring that no form of forced labour is tolerated on their territory. To this end, it is important for the Government to adopt appropriate legislation and to establish legal safeguards to prevent any de facto coercion to perform work, and to ensure that, when forced labour is exacted, adequate penalties are imposed on perpetrators. [242]

123. It further explained that a committee responsible for considering allegations under Article 1 must:

> evaluate the manner in which the Government is discharging its duty, pursuant to Article 1 of the Convention, "to suppress the use of forced or compulsory labour in all its forms". To this end, the committee will review the legal framework regulating the situation of migrant workers, in so far as it relates to their protection from forced labour, as well as the manner in which this framework is applied in practice. [243]

124. Thus, it is a State's legal framework and the measures adopted by the State for regulating the "situation of migrant workers" that is relevant for determining whether a State has failed to comply with its obligations under Article 1 and Article 25. The Complaint, however, does not engage with, let alone demonstrate, that the Kingdom of Saudi Arabia's legislative framework is non-compliant with Convention No. 29. While the Complaint makes some reference to the *Kafala* system, [244] it does not show how the *Kafala* system, now replaced by an employment contract system, fails to comply with Convention No. 29. In fact, as detailed legislative framework in the Kingdom of Saudi Arabia more generally is fully compliant with Convention No. 29. Moreover, the Kingdom of Saudi Arabia continues to work towards the reform of its legislative framework to ensure that it is fully aligned with the Convention No. 29 or any of the other ILO conventions referenced in the Complaint. As explained below, the Kingdom of Saudi Arabia has in place a strong legal framework and enforcement measures to prevent deception as to kinds of work and other mistreatment by employers towards migrant workers.

125. The legislative framework is complemented by robust enforcement and institutional mechanisms, most notably through the activation of the National Referral Mechanism (NRM) in 2020, which establishes an integrated system linking the Ministry of Human Resources and Social Development, the Human Rights Commission, and law enforcement authorities. Specialized inspection teams, trained in cooperation with the ILO, IOM, and UNODC, operate

nationwide and are supported by continuous, multilingual awareness campaigns targeting both employers and workers. Together, these measures reflect the Kingdom's effective and progressive compliance with ILO Conventions No. 29 and No. 105, fulfilling core obligations relating to prohibition, prevention, and victim protection, and demonstrating a shift from reactive enforcement to a preventive, institutionalized model. Between 2024 and 2025, 88 confirmed forced labour cases were formally referred through the NRM, alongside a 47% reduction in passport confiscation complaints compared to 2023, and the training of 1,200 inspectors on forced labour indicators. This framework operationalizes Convention No. 29 (Articles 1 and 5) and Convention No. 105 (Article 1(b)) by ensuring the suppression of forced labour, providing protection and assistance to victims through shelters and referral mechanisms, and prohibiting its use as a means of coercion or discrimination.

126. In addition to the protections implemented the Kingdom's legislative framework, the Ministry of Human Resources and Social Development has concluded 32 bilateral agreements with 22 countries in Asia and Africa to regulate the recruitment and employment of expatriate workers in Saudi Arabia. These agreements aim to promote lawful, organized employment practices, protect the rights of both workers and employers, and combat human trafficking. The partner countries include major labor-sending states across Asia (e.g., India, the Philippines, Sri Lanka, Vietnam, Indonesia, Bangladesh, Pakistan, Uzbekistan, Thailand) and Africa (e.g., Chad, Niger, Djibouti, Ethiopia, Kenya, Uganda, Tanzania, Sierra Leone, Burundi, Mauritania, Gambia, Somalia).

(a) Allegations concerning the Kafala system

127. The Complaint notes that "the vast majority of [African migrant] workers are victims of the Kafala system, [which is] a legally sanctioned structure that gives employers, who are protected and facilitated by the Saudi government, unchecked control over migrant workers' movement, employment and residency". It says that under the Kafala system, "African workers have no flexibility to change employers, no right to leave the country without authorisation and no remedy if they are harmed". [245] As established above in Section 6.2.1, these allegations are unsubstantiated. They also fail to take into account the substantial and structural reforms undertaken by the Kingdom of Saudi Arabia to enhance labour mobility and freedom of movement for migrant workers. In this regard, the Ministry of Human Resources and Social Development launched the Contractual Relationship Improvement Initiative in November 2020, which entered into force in March 2021 and was expressly designed to replace the former Kafala sponsorship system with a contractual, rights-based employment model. As a core component of this reform, migrant workers are now permitted to transfer their services to another employer, both upon completion of an authenticated employment contract and, in specified circumstances, during the contract term, without requiring the consent of their current employer. Since its launch, the labour mobility service has benefited more than 2.2 million workers. These reforms are reinforced by the mandatory electronic documentation of employment contracts, ensuring transparency, and the Wage Protection System, which guarantees payment of wages in accordance with agreed contractual terms.

128. In parallel, migrant workers may now obtain exit-and-re-entry visas and final exit visas directly through official electronic platforms, without requiring prior employer approval. Collectively, these measures reflect a government-stated transition from a sponsorship-based system to a contractual labour relationship governed by a written employment contract, which commences upon employment and concludes upon termination or expiry. Upon conclusion of the employment relationship, the worker may either enter into a new contract in accordance with applicable regulations or depart the Kingdom. The worker may stay in the Kingdom for up to 60 days after the conclusion of the employment contract to seek to secure alternative

employment. By eliminating employer consent requirements for job mobility and travel documentation, these reforms have significantly expanded workers' freedom of movement and reduced structural vulnerabilities to exploitation. Taken together, they ensure that the former Kafala system no longer places migrant workers in situations of dependency or exposure to exploitative work arrangements from which they are unable to leave, and they align with international labour standards."

129. [246]

(b) Allegations concerning deception as to kinds of work

130. The Complaint also suggests that migrant workers are being deceived as to the nature of the work they will perform. [247] This is referred to in the alleged "specific cases" [248] referenced in the Complaint. [249] Some of the anonymous witness testimonies also make reference to deception as to kinds of work. [250]

131. The Kingdom of Saudi Arabia has undertaken significant reform, to prevent deception as to kinds of work and deceptive tactics that negates the workers' consent. To that end, the Kingdom of Saudi Arabia has adopted measures that forbid an employer from transferring a contract to another employer without the employees' permission. [251] Furthermore, since 2019, employers have been required to document employment contracts through a platform approved by the MHRSD; currently, contracts are documented and authenticated via the Qiwa platform. [252] Separately, wage payments are monitored under the Wage Protection Program through the Mudad portal, under which establishments upload wage files so on-time, full salary payment can be monitored This system ensures that contracts are documented accurately and are accessible by the employee and the employer. Accordingly, such contracts may not be amended by one of the parties and are verified electronically in case of disputes before competent courts. Such contracts must include mandatory clauses as specified by the unified expat employment contract guidelines, which are specifically designed to prevent gaps and ensure transparency. [253] Those contracts are signed prior to the departure of workers from their home country to the Kingdom of Saudi Arabia, and in their native languages to guarantee their informed consent, a practice unique to the Kingdom of Saudi Arabia. Furthermore, under Article 30 of the Labour Law, Recruitment Process Outsourcing Agencies must be licensed and approved by the MHRSD, which ensures that they adhere and comply with legal standards.

(c) Allegations concerning the enforcement of labour rights

132. The Complaint also alleges that the Kingdom of Saudi Arabia has a "weak enforcement of labour laws" [254] and calls for "stricter enforcement of labour rights". [255] These allegations of a "weak enforcement of labour laws" are not substantiated in the Complaint. The Kingdom of Saudi Arabia, in fact, does have in place a robust legislative framework to ensure compliance with labour regulations.

133. One of the Implementing Regulations of the Kingdom of Saudi Arabia Labour Law specifically regulates and organises labour inspections. These regulations serve as a framework to enhance the monitoring of compliance with Saudi laws and enforcement of labour rights and regulations. Inspections are conducted at regular intervals, as well as in response to specific complaints or violations. [256] Moreover, the effectiveness of these mechanisms is continually evaluated and improved to address any gaps in enforcement.

134. In particular, the MHRSD carries out regular inspections to ensure compliance with labour regulations. These inspections cover various aspects, including working conditions, payment of wages and workplace safety standards. In 2025 (from 01 January to 16 August), MHRSD's inspection teams conducted more than 912,000 field inspection visits, recording 252,219

labour-law violations and 98,462 warnings. [257] This regular monitoring makes it possible to identify and rectify problems of non-compliance. [258]

135. Furthermore, the accessibility to the justice system has been greatly improved with the introduction of the *Najiz* portal by the Ministry of Justice. This portal enhances accessibility by providing a digital platform where individuals can easily file complaints, track their case status, and access legal information. The portal aims to simplify and expedite the legal process. [259] Moreover, today, the MHRSD is directly involved in providing support through Labour Dispute Resolution Offices, which assist migrant workers in navigating legal issues, lodging complaints and understanding their rights, thereby greatly enhancing the accessibility of the Kingdom of Saudi Arabia's justice system to migrant workers. The aim is to ensure that all workers have access to the assistance they need to resolve employment-related and work-related disputes. [260] Workers may also seek assistance through the Saudi National Committee of Workers' Committees (SNC), an independent national workers' representation organisation that receives workers' complaints and labour inquiries via its hotline and email, and that is mandated to speak on behalf of workers, negotiate with employers, and raise recommendations to resolve workplace issues. [261] In addition, the Saudi Enforcement Courts, established as part of broader judicial reforms, have played a vital role in implementing and enforcing laws and judgments. [262] These courts were created to address the need for a specialised judicial body that focuses on the effective execution of legal decisions and ensuring compliance with court orders. The efficiency of these courts is enhanced by technological advancements and procedural reforms, which streamlines the execution of legal decisions. In parallel, the Ministry of Justice and the MHRSD are advancing the Preventive Justice Initiative, which implements mechanisms and procedures to prevent disputes from arising, expedite resolution, and (where appropriate) move directly to enforcement. [263] As part of these efforts, a documented employment contract may be treated as an enforceable instrument, allowing key clauses (including wage obligations) to be pursued through enforcement procedures without separate litigation. [264]

136. Labour disputes are received electronically by the MHRSD through its labour dispute resolution offices (Amicable Settlement); unresolved cases are then filed with the specialised Labour Courts under the Ministry of Justice. Non-Arabic speakers are supported through the Ministry of Justice's Unified Translation Center, which provides real-time interpretation during hearings across Saudi courts. [265] These procedures operate under defined rules and timeframes to expedite resolution and ensure that workers can efficiently recover their rights.

137. Additionally, Saudi courts have established dedicated circuits and trained judges specifically for handling lawsuits related to human trafficking. These specialised judicial bodies are part of the Kingdom of Saudi Arabia's broader efforts to combat human trafficking and ensure justice is served in such cases.

138. The Kingdom of Saudi Arabia thus has in place a robust legislative framework to ensure compliance with Convention No. 111.

6.3.2. Alleged violation of Convention No. 95: the Protection of Wages Convention

139. The allegations in the Complaint also do not give rise to a violation of Convention No. 95 concerning the protection of wages.

140. The Complaint sets out some unparticularised instances where groups or individuals in the Kingdom of Saudi Arabia have purportedly experienced "wage theft" or "wage denial". [266] As demonstrated above in **Section 6.2.2** above, these allegations are highly speculative and

completely unsupported by evidence. These allegations also do not rise to a violation of Convention No. 95.

141. Obligations under Convention No. 95 with respect to "wage theft" or "wage delay" [267] are set out in Article 12. Article 12 specifies that:

> 1. Wages shall be paid regularly. Except where other appropriate arrangements exist which ensure the payment of wages at regular intervals, the intervals for the payment of wages shall be prescribed by national laws or regulations or fixed by collective agreement or arbitration award.
>
> 2. Upon the termination of a contract of employment, a final settlement of all wages due shall be effected in accordance with national laws or regulations, collective agreement or arbitration award or, in the absence of any applicable law, regulation, agreement or award, within a reasonable period of time having regard to the terms of the contract.

142. As established by an ILO committee of experts, a State's obligations under Article 12 are comprised of three essential elements: (i) efficient control; (ii) appropriate sanctions; and (iii) the means to redress the injury caused (including not only the full payment of the amounts due, but also fair compensation for the losses incurred by the delayed payment). [268]

143. The factual allegations in the Complaint concerning some unparticularised instances [269] where certain groups [270] or individuals [271] purportedly had their wages delayed or denied while working in the Kingdom of Saudi Arabia, even if true, *quod non*, do not alone give rise to non-compliance with Article 12. They do not show that the Kingdom of Saudi Arabia failed to establish "efficient control", "appropriate sanctions" or "means of redress" for wage delay or denial from employers. [272] In fact, the Complaint does not at all address the measures that are in place in the Kingdom of Saudi Arabia to prevent wage theft and denial.

144. The Kingdom of Saudi Arabia has in place and is effectively implementing a robust legal framework which ensures compliance with Convention No. 111. This is evidenced by:

a. in 2020, the Kingdom of Saudi Arabia introduced a wage insurance policy, ensuring that the Government intervenes by allocating state funds to cover unpaid wages for up to six months, along with a return ticket to the worker's home country. This applies in cases where employers are unable to meet their obligations and have delayed more than 80% of workers' wages. [273] In 2024, the MHRSD issued binding guidelines that operationalise this scheme. [274] Furthermore, in accordance with Article 19 of the Labour Law, wages owed to workers – or their heirs – are classified as first-rate privileged debts in bankruptcy situations. This means that, in the event of an employer's bankruptcy, owed wages are prioritised for payment over other debts, including judicial and bankruptcy-related expenses. Specifically, one month's wages are to be paid on an expedited basis before any other expenses; [275] in addition, under the Preventive Justice Initiative jointly advanced by the Ministry of Justice and the MHRSD, a documented employment contract (including the wage clause) may be treated as an enforceable instrument, allowing direct recourse to enforcement procedures without separate litigation where wage obligations are not honoured; [276]

b. the MHRSD has made significant efforts to ensure the applicability and enforcement of wage protection laws in the Kingdom of Saudi Arabia. The following data highlights the Kingdom of Saudi Arabia's commitment to safeguarding workers' rights through the "Wage Protection Program":

   i. 88% of companies in the Kingdom are fully compliant with the Wage Protection Program; [277]

ii. 91% of establishments upload their payroll files within 30 days of the due date (after the upload window was shortened to tighten enforcement);

iii. in the first half of 2024, inspections recorded 59,891 violations for failing to submit the Wage Protection Program file monthly or to meet the specified compliance rate, and 16,295 violations for not paying wages on time, withholding wages without legal justification, or withholding part of the wages;[278] and

c. the program safeguarded wages of more than 8.5 million employees in 2024. [279] Between 2019 and 2024, the MHRSD intensified inspection activity to ensure compliance with labour laws, regulations, and guidelines to ensure the well-being of the labour market. For example, the MHRSD conducted over 700,000 field inspection visits, issuing 88,776 warnings and recording 107,329 violations, in the first half of 2024 alone. [280] Furthermore, In 2025 (from 01 January to 16 August), over 912,000 field inspection visits were conducted, recording 252,219 labour-law violations and 98,462 warnings. This extensive inspection effort is one of the many examples that highlights the Kingdom of Saudi Arabia's efforts in the area of enforceability of labour laws and regulations. [281]

145. The allegations in the Complaint concerning wage theft and wage denial thus do not give rise to a violation of Convention No. 95.

6.3.3. Alleged violation of Convention No. 111: the Discrimination (Employment and Occupation) Convention

146. The allegations in the Complaint do not rise to a violation of the Convention No. 111.

147. The allegations made in the Complaint regarding discrimination are sparse. The entire section on "racial discrimination and marginalisation" in the Complaint is as follows:

> The racial discrimination experienced by African migrant workers in Saudi Arabia violates Convention No. 111, which stipulates that all workers be treated fairly and without discrimination based on race, colour, or national origin. The differential treatment of African workers in terms of salaries, working conditions and access to fundamental rights not only violates the concept of equal opportunity but also sustains a system in which African workers are considered inferior and disposable.

148. The Complaint then notes generally that migrant workers "face discrimination not only on account of their status as migrant workers but also because of their race and economic background". [282] As outlined above, these sweeping allegations are speculative and unsupported by evidence. They also do not rise to a violation of Convention No. 111.

149. The substantive obligations of States under Convention No. 111 are established in Articles 2 and 3 of the Convention. Article 2 requires the Kingdom of Saudi Arabia to "declare and pursue a national policy designed to promote, by methods appropriate to national conditions and practice, equality of opportunity and treatment in respect of employment and occupation, with a view to eliminating any discrimination in respect thereof." [283] Article 3 requires the Kingdom of Saudi Arabia to undertake "by methods appropriate to national conditions and practice" to: (a) seek the co-operation of employers and workers' organisations and other appropriate bodies in promoting the acceptance and observance of the policy; (b) "enact such legislation and to promote such educational programmes … to secure the acceptance and observance of the policy"; (c) "repeal any statutory provisions and modify any administrative instructions or practices which are inconsistent with the policy"; (d) "pursue the policy … under the direct control of a national authority"; (e) "ensure observance of the policy in the activities of vocational guidance, vocational training and placement services under the direction of a

national authority"; (f) "indicate in its annual reports on the application of the Convention the action taken in pursuance of the policy and the results secured by such action."[284]

150. The Complaint does not establish a breach of either Article 2 or Article 3. The allegation that African workers in the Kingdom of Saudi Arabia experience "discrimination" is wholly unsubstantiated, as explained in **Section 6.2.3** above. It also does not itself establish a breach of the substantive obligations in Convention No. 111. The fact that "African migrant workers" in the Kingdom of Saudi Arabia "experience" racial or other forms of discrimination, even if proven, *quod non*, does not alone give rise to non-compliance with Convention No. 111. The Kingdom of Saudi Arabia is not required to guarantee that no one working in the Kingdom of Saudi Arabia experiences discrimination. It is required to have in place a "national policy" and take other specific measures "with a view to eliminating discrimination [in respect of employment and occupation]." [285] The Kingdom of Saudi Arabia has, indeed, upheld these obligations.

151. The Complaint does not at all engage with the "national policy" that is in place in the Kingdom of Saudi Arabia to promote … equality of opportunity and treatment in respect of employment and occupation" and eliminate "any discrimination in respect thereof." [286] Indeed, the Kingdom of Saudi Arabia has adopted significant reforms and has in place a robust legal framework to ensure compliance with Convention No. 111. Discrimination is explicitly prohibited under Article 8 and 26 of the Basic Law of Governance and Article 61 of the Labour Law in the Kingdom. [287] Since 1994, various Council of Ministers resolutions have reinforced the right to equal wages for male and female workers performing the same work under equivalent conditions. [288] The Kingdom of Saudi Arabia has also introduced a national policy aimed at promoting equality of opportunity and treatment in employment and occupation. [289] The policy will be implemented in phases, with a comprehensive evaluation planned after five years to assess its effectiveness and make necessary amendments. The primary goal of this policy is to eradicate discrimination by strengthening labour regulations and enforcing measures against discriminatory practices.

152. To ensure the effective implementation and compliance with this policy, the Kingdom of Saudi Arabia has also put in place mechanisms to assess the impact of regulations and amendments, focusing on ensuring equal pay for work of equal value and enhancing the participation of women and underrepresented groups in the labour market. [290] These mechanisms are expressly set out in the policy's "Objectives", which require continuous impact measurement of anti-discrimination legislation (including equal-pay measures) and assessment of participation gains for under-represented groups. [291]

153. Moreover, the MHRSD is now directly tasked with monitoring and evaluating the implementation of the new policy. The MHRSD oversees the process through systematic programs for monitoring, evaluation, and reporting to ensure that equal opportunities and equitable treatment are realised across the workforce. [292]

154. The Committee of Experts on the Application of Conventions and Recommendation's observation, published at the 113th Session of the International Labour Conference in June 2025, noted that:

    a. the Kingdom of Saudi Arabia government was preparing a draft national equality policy (as required by Article 2), in consultation with the ILO and in partnership with the government authorities concerned and employers' and workers' representatives. A draft had been submitted for adoption to the competent authority;

b. the Resolution of the Minister of Human Resources and Social Development No. 51848 dated 5 November 2020, was adopted to allow for migrant workers to end their employment contracts and change their sponsor with 90 days' notice. This means migrant workers may request final-exit or exit-re-entry visas electronically without employer consent; [293]

c. the Kingdom of Saudi Arabia introduced the online Labour Education Portal to provide information on labour legislation and working conditions, as well as advice services in four languages, including English and Arabic;

d in collaboration with embassies of countries of origin of migrant workers, business centres, and recruitment agencies, the Government of the Kingdom of Saudi Arabia conducted awareness campaigns through social media;

155. Therefore, the allegations in the Complaint do not rise to a violation of the Convention No. 111.

7. REQUEST FOR RELIEF

156. The Kingdom of Saudi Arabia has strong protections for its migrant workers, including workers from Africa. Since 2015, it has undertaken extensive labour law reforms in close coordination also with the ILO. These reforms continue. Therefore, for the reasons set out in this Response, the Kingdom of Saudi Arabia respectfully requests that the ILO Governing Body declare:

a. the Complaint non-receivable and inadmissible.

b. that the Complaint be dismissed on the merits; and

c. this Complaint procedure be closed.

[1] The ILO Governing Body decided in November 2025 that certain allegations in the Complaint are not receivable. This response therefore does not respond to those allegations. It is clear, however, that those allegations were baseless given that the Governing Body deemed them non-receivable even before having the advantage of hearing the Kingdom of Saudi Arabia's formal response to them. *See* "Decision concerning the complaint alleging non-observance by Saudi Arabia of Conventions Nos 29, 95, 111, 143 and 155", GB.355/INS/17/1/Decision, *International Labour Organization*, 27 November 2025, available at: https://www.ilo.org/resource/conference-paper/gb/355/decision-concerning-complaint-alleging-non-observance-saudi-arabia, last accessed 23 December 2025.

[2] Admissibility and receivability are distinct legal concepts. Receivability refers to whether the criteria set out in Article 26 of the ILO Constitution for the Governing Body to initiate its consideration of the Complaint are met. Admissibility, on the other hand, refers to the appropriateness of hearing the complaint, even if it is receivable or the court or tribunal has jurisdiction. Admissibility, as applied by international courts and tribunals, "addresses the question of whether, in light of all the relevant circumstances, that court or tribunal *should* entertain the case" (Shabtai Rosenne, "International Courts and Tribunals, Jurisdiction and Admissibility of Inter-State Applications", *Max Planck Encyclopedias of International Law*, March 2006, paragraph 2, (Annex 19)).

[3] "Draft minutes of the Institutional Section", GB.355/INS/PV/Draft, *International Labour Organization*, 23 December 2025, available at: https://www.ilo.org/sites/default/files/2025-12/GB355-INS-PV-Draft-%5BRELMEETINGS-251105-001%5D-EN.pdf , last accessed 6 January 2025, paragraphs 826–870. The following 25 representatives made statements supporting the Kingdom of Saudi Arabia's legal position: Tunisia (on behalf of the Arab group), Oman (on behalf of the Gulf Cooperation Council), Sudan, Malawi, Qatar, Senegal, Gabon, Libya (speaking on behalf of Cameroon, Libya, Mauritania, Morocco, Niger, Qatar, Sudan and Tunisia), Bangladesh, Iran, Brunei Darussalam, Russia, China, Niger, Jordan, Bahrain, Syria, Somalia, Yemen, Algeria, Egypt, Pakistan, Kyrgyzstan, Mauritania and Palestine.

[4] *See* Section 5.1.1.

[5] *See* "Decisions on the reports of the Officers of the Governing Body concerning the receivability of representations made under article 24 of the ILO Constitution: GB.352/INS/20/2 to INS/20/10/Decisions", *International Labour Organization*, 7 November 2024, available at: https://www.ilo.org/resource/record-decisions/gb/352/decisions-reports-officers-governing-body-concerning-receivability, last accessed 23 September 2025.

[6] "Decision concerning the report of the Committee set up to examine the representation alleging non-observance by Saudi Arabia of Convention No. 29 and its Protocol of 2014, and Conventions Nos 81, 95 and 111", GB.355/INS/16/7/Decision, *International Labour Organization*, 27 November 2025, available at: https://www.ilo.org/resource/record-decisions/gb/355/decision-concerning-report-committee-set-examine-representation-alleging-0, last accessed 23 December 2025.

[7] *See* Case No 3468 (Saudi Arabia) - Complaint date: 05-JUN-24, available at https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50001:0::NO:50001:P50001_COMPLAINT_FILE_ID:4399445.

[8] *See* "Supervising the application of International Labour Standards for Saudi Arabia", *International Labour Organization*, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:11110:0::NO:11110:P11110_COUNTRY_ID,P11110_CONTEXT:103208,SC, last accessed 10 September 2025.

[9] *See* Complaint, Section II, page 4.

[10] Observation (CEACR) - adopted 2024, published 113rd ILC session (2025), *International Labour Organization*, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID%2CP13100_COUNTRY_ID:4414942%2C103208, last accessed 10 September 2025.

[11] Observation (CEACR) - adopted 2024, published 113rd ILC session (2025), *International Labour Organization*, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID%2CP13100_COUNTRY_ID:4414942%2C103208, last accessed 10 September 2025.

[12] "Decision concerning the complaint alleging non-observance by Saudi Arabia of Conventions Nos 29, 95, 111, 143 and 155", GB.355/INS/17/1/Decision, *International Labour Organization*, 27 November 2025, available at: https://www.ilo.org/resource/conference-paper/gb/355/decision-concerning-complaint-alleging-non-observance-saudi-arabia, last accessed 23 December 2025.

[13] *See* Complaint, Section II, page 3, referring to the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), the Right to Organise and Collective Bargaining Convention, 1949 (No. 98) and the 1998 Declaration [on Fundamental Principles and Rights at Work and its Follow-up]. *See* Complaint, Section II, page 3, Convention (No. 87) concerning freedom of association and protection of the right to organise, adopted 9 July 1948, entered into force 4 July 1950, 68 UNTS 17, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO:12100:P12100_INSTRUMENT_ID:312232:NO, last accessed 23 September 2025; Convention (No. 98) concerning the application of the principles of the right to organise and to bargain collectively, as modified by the Final Articles Revision Convention, 1961, adopted 1 July 1949, entered into force 18 July 1951, 96 UNTS 257, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO:12100:P12100_INSTRUMENT_ID:312243:NO, last accessed 23 September 2025; and the ILO 1998 Declaration on Fundamental Principles and Rights at Work and its Follow-up, adopted on 18 June 1998, available at: ILO_1998_Declaration_EN.pdf, last accessed 23 September 2025

[14] Constitution of the International Labour Organisation, adopted 1 April 1919, entered into force 28 June 1919 ("**ILO Constitution**"), available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A15666248679710 40%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 5(e).

[15] *See* Section 5.2.1.

[16] *See* Section 5.2.2.

[17] *See* Section 6.1.

[18] *See* Section 6.2.

[19] *See* Section 6.3. There are no allegations in the Complaint relevant to a potential claim that the Kingdom of Saudi Arabia has failed to secure the observance of the Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187). The Kingdom of Saudi Arabia reserves the right to respond to any such allegations, should they be raised against the Kingdom.

[20] Issued pursuant to Royal Decree No. M/51 dated 27 September 2005.

[21] *See* Article 61 of the Saudi Labor Law, issued pursuant to Royal Decree No. M/51 dated 27 September 2005, (Annex 2).

[22] *See* Articles 98, 101 and 102 of the Labor Law (Annex 3).

[23] *See* Article 122 of the Labor Law (Annex 4).

[24] Issued pursuant to Royal Decree No. M/96 dated 31 May 2018.

[25] *See* Article 5 of the Anti-Harassment Law, issued pursuant to Royal Decree No. M/96 dated 31 May 2018.

[26] Issued pursuant to Royal Decree No. M/40 dated 23 July 2009.

[27] *See* Article 15 of the Anti-Trafficking in Persons Law, issued pursuant to Royal Decree No. M/40 dated 23 July 2009.

[28] *See* MHRSD's website, "*Ministry of Human Resources and Social Development: Over 900,000 Establishments Covered by Wage Protection Program with Compliance Rate Exceeding 88%*" (news release date 31/12/2024), available at: https://www.hrsd.gov.sa/en/media-center/news/, last accessed 14/09/2025.

[29] *See* MHRSD's website, "*Friendly Settlement for Labor Disputes*", available at: https://www.hrsd.gov.sa/en/ministry-services/services/269970, last accessed 14/09/2025.

[30] *See* Article 34 of the Law of Civil Procedure, issued pursuant to Royal Decree No. M/1 dated 25 November 2013, available at: https://laws.boe.gov.sa/BoeLaws/Laws/LawDetails/f0eaae46-9f84-40ee-815e-a9a700f268b3/1, last accessed 02/10/2025. English translation in (Annex 10).

[31] *See* Article 34 of the Law of Civil Procedures, issued pursuant to Royal Decree No. M/1 dated 25 November 2013(Annex 10).

[32] Issued pursuant to Ministerial Resolution No. 120279 dated 27 February.

[33] *See* MHRSD's website, "*The National Policy for the Elimination of Forced Labor in the Kingdom of Saudi Arabia*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/, last accessed 14/09/2025.

[34] *See* MHRSD's website, "*Guide to Services Provided for Expatriates*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/281120249, last accessed 14/09/2025.

[35] *See* MHRSD's website, "*Controls to Improve the Contractual Relationship of Domestic Workers and their Equivalents*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/04042024, last accessed 14/09/2025.

[36] *See* MHRSD's website, "*The Guide to the Rights and Obligations of Domestic Workers in the Kingdom of Saudi Arabia*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/, last accessed 14/09/2025.

[37] See MHRSD's website, "*Contract Management*", available at: https://www.hrsd.gov.sa/en/ministry-services/services/%D8%A5%D8%AF%D8%A7%D8%B1%D8%A9-%D8%A7%D9%84%D8%B9%D9%82%D9%88%D8%AF, last accessed 07/10/2025.

[38] *See* Qiwa website, "*How to manage your current employment contract?*", available at: https://www.qiwa.sa/en/employees/manage-your-current-job/how-manage-your-current-employment-contract, last accessed 06/10/2025

[39] *See* Ministerial Resolution No. 51848 dated 5 November 2020 and Ministry of Human Resources and Social Development, issuing the User Guide for Services of the Contractual Relationship Improvement Initiative, available at: https://www.hrsd.gov.sa/sites/default/files/2023-02/E51848.pdf, last accessed 01/10/2025.

[40] *See* Historical Overview of the Rules for Forming Labour Committees and its Implementing Regulation (Annex 14), as summarised on the National Committee of Workers Committees website. Available at: https://www.snc.org.sa/about/the-firm/, last accessed 14/09/2025.

[41] *See* Historical Overview of the Rules for Forming Labour Committees and its Implementing Regulation (Annex 14), as summarised on the National Committee of Labour Committees website. Available at: https://www.snc.org.sa/about/the-firm/, last accessed 14/09/2025.

[42] *See* Employer Compliance Guide issued by MHRSD, available at: https://www.hrsd.gov.sa/sites/default/files/2023-02/E14102020.pdf, last accessed 14/09/2025.

[43] *See* MHRSD's website, "*Labor Affairs Agency*", available at: https://www.hrsd.gov.sa/en/ministry/about-ministry/about-us/ministry-sectors/767512/767569, last accessed 14/09/2025.

[44] *See* "Saudi Arabia", *International Labour Organization*, 13 February 2017, available at: https://www.ilo.org/resource/saudi-arabia, last accessed 10 September 2025.

[45] *See* "Development cooperation between ILO and Saudi Arabia enters new phase", *International Labour Organization*, 8 June 2023, available at: https://www.ilo.org/resource/news/development-cooperation-between-ilo-and-saudi-arabia-enters-new-phase, last accessed 10 September 2025.

[46] *See* MHRSD's website, "Ministry of Human Resources and Social Development Announces Publication of the Executive Regulations for the Labor Law Amendments", available at: https://www.hrsd.gov.sa/en/media-center/news/%D9%88%D8%B2%D8%A7%D8%B1%D8%A9-%D8%A7%D9%84%D9%85%D9%88%D8%A7%D8%B1%D8%AF-%D8%A7%D9%84%D8%A8%D8%B4%D8%B1%D9%8A%D8%A9-%D9%88%D8%A7%D9%84%D8%AA%D9%86%D9%85%D9%8A%D8%A9-%D8%A7%D9%84%D8%A7%D8%AC%D8%AA%D9%85%D8%A7%D8%B9%D9%8A%D8%A9-%D8%AA%D9%8F%D8%B9%D9%84%D9%86-%D8%B9%D9%86-%D9%86%D8%B4%D8%B1-%D8%A7%D9%84%D9%84%D8%A7%D8%A6%D8%AD%D8%A9-%D8%A7%D9%84%D8%AA%D9%86%D9%81%D9%8A%D8%B0%D9%8A%D8%A9-%D9%84%D8%AA%D8%B9%D8%AF%D9%8A%D9%84%D8%A7%D8%AA-%D9%86%D8%B8%D8%A7%D9%85-%D8%A7%D9%84%D8%B9%D9%85%D9%84, last accessed 05/10/2025.

[47] *See* MHRSD's announcement on its website at: https://www.hrsd.gov.sa/en/media-center/news/060720242, last accessed 15/09/2025.

[48] *See* MHRSD's website, "*Announcement Regarding the Update of the Table of Violations and Penalties for the Labor Law and Its Executive Regulations*" (09 June 2025), available at: https://www.hrsd.gov.sa/en/media-center/announcements/, last accessed 14/09/2025.

[49] National Policy On Occupational Safety and Health, adopted pursuant to Council of Ministers Resolution No. 328 dated 26 January 2021, available at: https://www.hrsd.gov.sa/sites/default/files/2023-02/E01042021.pdf, last accessed 01/10/2025.

[50] The National Council for Occupational Safety & Health, established pursuant to Council of Ministers Resolution No. 379 dated 8 February 2022, https://www.ncosh.gov.sa/en/about-council/council-overview, last accessed 01/10/2025.

[51] Ministerial Resolution No. 3337 dated 14 May 2014, available at: https://www.hrsd.gov.sa/en/media-center/news/60525155, last accessed 02/10/2025.

[52] Wage Protection Program, issued pursuant to Ministerial Resolution No. 803 dated 26 April 2018, available at: https://www.hrsd.gov.sa/en/knowledge-centre/initiatives/national-transformation-initiatives-bank/108808, last accessed 01/10/2025.

[53] *See* MHRSD's website, "*The Ministry of Human Resources and Social Development launches the "Wage Protection Service*" for domestic workers' salaries." (13 May 2025), available at: https://www.hrsd.gov.sa/en/media-center/news/130520241, last accessed 14/09/2025.

[54] Insurance Product Initiative, issued pursuant to Council of Ministers Resolution No. 733 dated 7 July 2020, available at: https://www.hrsd.gov.sa/en/media-center/news/061020241, last accessed 01/10/2025.

[55] *See* Council of Ministers Resolution No. 591 dated 25 May 2021, available at: Umm Al-Qura Official Gazette website, "*Mandating Recruitment Agencies and Offices to Provide Insurance on Domestic Workers' Employment Contracts*" (04 June 2021), https://uqn.gov.sa/?p=4967, last accessed 14/09/2025. English translation in (Annex 15).

[56] *See* MHRSD's website, "*Saudi Arabia Introduces National Policy for the Elimination of Forced Labor*" (22 January 2025), available at: https://www.hrsd.gov.sa/en/media-center/news/, last accessed 14/09/2025.

[57] *See* MHRSD's website, "*Labor Reform Initiative (LRI) Services Guidebook*", available at: Labor Reform Initiative (LRI) Services Guidebook | Ministry of Human Resources and Social Development, last accessed 07/10/2025.

[58] *See* MHRSD's website, "*Ministerial Decision 75506*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/ministerial-decisions/298504, last accessed 07/10/2025.

[59] *See* MHRSD's website, "*The Procedural Guide for ending the contractual relationship*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/1170532, last accessed 07/10/2025.

[60] *See* MHRSD's website, "*The Procedural Guide for ending the contractual relationship*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/%D8%A7%D9%84%D8%AF%D9%84%D9%8A%D9%84-%D8%A7%D9%84D8%A5%D8%B1%D8%B4%D8%A7%D8% AF%D9%8A-%D9%84%D9%85%D8%A8%D8%A7%D8%AF%D8%B1%D8%A9-%D8%B9%D9%82%D8%AF-%D8%A7%D9%84%D8%B9%D9%85%D9%84-%D8%A7%D9%84%D9%85%D9%88%D8%AB%D9%82-%D8%B3%D9%86%D8%AF%D9%8B%D8%A7, last accessed 07/10/2025.

[61] National Policy for Promoting Equal Opportunities and Equal Treatment in Employment and Occupation in the Kingdom, adopted pursuant to Council of Ministers Resolution No. 416 dated 10 January 2023, available at: https://uqn.gov.sa/?p=21526, last accessed 01/10/2025. English translation in (Annex 16).

[62] *See* MHRSD's website, "*Ministry of Human Resources and Social Development publishes regulations for agricultural workers, private herdsmen, and those in similar roles*" (26 February 2025), available at: https://www.hrsd.gov.sa/en/media-center/news/, last accessed 14/09/2025.

[63] Convention (No. 87) concerning the Promotional Framework for Occupational Safety and Health, adopted 15 June 2006, entered into force 20 February 2009, 2564 UNTS 291, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO:12100:P12100_INSTRUMENT_ID:312332:NO, last accessed 23 December 2025.

[64] Convention concerning hygiene in commerce and offices, adopted 8 July 1964, entered into force 29 March 1967, 560 UNTS 201, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_ILO_CODE:C120, last accessed 22 September 2025.

[65] Convention concerning the Protection of Wages, 1949 (No. 95), adopted 1 July 1949, entered into force 24 September 1952, 138 UNTS 225, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_ILO_CODE:C095, last accessed 22 September 2025.

[66] Protocol of 2014 to the Forced Labour Convention, 1930 (No. P029), adopted 11 June 2014, entered into force 9 November 2016, 39 UNTS 55, available at: available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_ILO_CODE:P029, last accessed 22 September 2025.

[67] "Trade unions take Saudi Arabia to UN labour body over exploitation and deaths of migrant workers", *International Trade Union Association*, 4 June 2025, available at: https://www.ituc-csi.org/Trade-unions-take-Saudi-Arabia-to-UN-labour-body, last accessed 10 September 2025.

[68] *See* Complaint, page 8.

[69] Record of proceedings, Plenary sitting: Report of the Committee on the Application of Standards, International Labour Organization", *International Labour Organization*, 4 July 2025, ILC.113/Record No. 4C ("**Record of proceedings of 2025 ILC, 4 July 2025**"), available at: https://www.ilo.org/sites/default/files/2025-07/ILC113-Record-4C-%5BRELMEETINGS-250613-019%5D-Web-EN.pdf, pages 13–14. The comments were made in the Chairperson's capacity as Chairperson of the Workers' Group of the Conference at the relevant time.

[70] Record of proceedings of 2025 ILC, 4 July 2025, available at: https://www.ilo.org/sites/default/files/2025-07/ILC113-Record-4C-%5BRELMEETINGS-250613-019%5D-Web-EN.pdf, page 14.

[71] Record of proceedings of 2025 ILC, 4 July 2025, available at: https://www.ilo.org/sites/default/files/2025-07/ILC113-Record-4C-%5BRELMEETINGS-250613-019%5D-Web-EN.pdf, page 14.

[72] See Compliance Rate to the Wage Protection Program available at: https://www.hrsd.gov.sa/en/media-center/news/%D8%A8%D8%B1%D9%86%D8%A7%D9%85%D8%AC-%D8%AD%D9%85%D8%A7%D9%8A%D8%A9-%D8%A7%D9%84%D8%A3%D8%AC%D9%88%D8%B1-%D8%A8%D9%86%D8%B3%D8%A8%D8%A9-%D8%A7%D9%85%D8%AA%D8%AB%D8%A7%D9%84 last accessed 10 Oct 2025.

[73] *See* "*International trade union visits Riyadh labor court to discuss work environment*", ARAB NEWSARAB NEWS, 11 July 2019, available at: https://www.arabnews.com/node/1523881/saudi-arabia, last accessed 9 September 2025.

[74] *See* "*International trade union visits Riyadh labor court to discuss work environment*", ARAB NEWSARAB NEWS, 11 July 2019, available at: https://www.arabnews.com/node/1523881/saudi-arabia, last accessed 9 September 2025.

[75] *See* "Trade unions take Saudi Arabia to UN labour body over exploitation and deaths of migrant workers", *International Trade Union Association*, 4 June 2025, available at: https://www.ituc-csi.org/Trade-unions-take-Saudi-Arabia-to-UN-labour-body, last accessed 9 September 2025.

[76] *See* "*Saudi Vice Minister for Labor Holds High-Level Meetings at Global Labor Market Conference in Riyadh*", SAUDI PRESS AGENCY, 1 February 2025, available at: https://spa.gov.sa/en/N2253935, last accessed 10 September 2025.

[77] Footnote 2 above explains the distinction between the concepts of receivability and admissibility.

[78] "Draft minutes of the Institutional Section", GB.355/INS/PV/Draft, *International Labour Organization*, 23 December 2025, available at: https://www.ilo.org/sites/default/files/2025-12/GB355-INS-PV-Draft-%5BRELMEETINGS-251105-001%5D-EN.pdf , last accessed 6 January 2025, paragraphs 826–870. The following 25 representatives made statements supporting the Kingdom of Saudi Arabia's legal position: Tunisia (on behalf of the Arab group), Oman (on behalf of the Gulf Cooperation Council), Sudan, Malawi, Qatar, Senegal, Gabon, Libya (speaking on behalf of Cameroon, Libya, Mauritania, Morocco, Niger, Qatar, Sudan and Tunisia), Bangladesh, Iran, Brunei Darussalam, Russia, China, Niger, Jordan, Bahrain, Syria, Somalia, Yemen, Algeria, Egypt, Pakistan, Kyrgyzstan, Mauritania and Palestine.

[79] *See*, for example, International Labour Office, *First Report: Complaint Concerning Non-observance by Bahrain of the Discrimination (Employment and Occupation) Convention, 1958 (No. 111), Made by Delegates to the 100th Session (2011) of the International Labour Conference under Article 26 of the ILO Constitution* ("**2014 ILO Report on Bahrain Complaint**"), Governing Body, 320th Session, 19 March 2014, GB.320/INS/15/1, available at: https://www.ilo.org/resource/record-decisions/gb/320/decision-15th-item-agenda-complaint-concerning-non-observance-bahrain, last accessed 22 September 2025, paragraph 20(e); International Labour Office, *Complaint Alleging Non-observance by Qatar of the Forced Labour Convention, 1930 (No. 29), and the Labour Inspection Convention, 1947 (No. 81), Made by Delegates to the 103rd Session (2014) of the International Labour Conference under article 26 of the ILO Constitution*, Governing Body, 331st session, November 2017, GB.331/INS/13(Rev.) ("**2017 ILO Report on Qatar Complaint**"), available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_586479.pdf, last accessed 22 September 2025; International Labour Office, *Complaint Concerning Non-observance by Guatemala of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), Made by Delegates to the 101st Session (2012) of the International Labour Conference under article 26 of the ILO Constitution*, Governing Body, 334th session, October 2018, GB.334/INS/9(Rev.), available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@relconf/documents/meetingdocument/wcms_647960.pdf, last accessed 22 September 2025.

[80] 2017 ILO Report on Qatar Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_586479.pdf, last accessed 22 September 2025.

[81] Amendment to the Technical Cooperation Program to support the Ministry of Human Resources and Social Development in Analysis, Policy and Capacity development, The Kingdom of Saudi Arabia-the International Labour Organisation, 4 June 2025, (Annex 29). *See also* "Saudi Arabia and ILO seal new phase of joint work to advance decent work reforms", *International Labour Organization*, 4 June 2025 ("**Saudi Arabia and ILO seal new phase of decent work reforms, June 2025**"), available at: https://www.ilo.org/resource/news/saudi-arabia-and-ilo-seal-new-phase-joint-work-advance-decent-work-reforms, last accessed 10 September 2025.

[82] Saudi Arabia and ILO seal new phase of decent work reforms, June 2025, available at: https://www.ilo.org/resource/news/saudi-arabia-and-ilo-seal-new-phase-joint-work-advance-decent-work-reforms, last accessed 22 September 2025.

[83] Saudi Arabia and ILO seal new phase of decent work reforms, June 2025, available at: https://www.ilo.org/resource/news/saudi-arabia-and-ilo-seal-new-phase-joint-work-advance-decent-work-reforms, last accessed 22 September 2025.

[84] The International Court of Justice has clarified that "[i]nternational organisations are subjects of international law and, as such, are bound by any obligations incumbent on them under general rules of international law": *Interpretation of the Agreement of 25 March 1951 between the WHO and Egypt, Advisory Opinion*, 1980 I.C.J. 73, 20 December 1980, available at: https://www.icj-cij.org/sites/default/files/case-related/65/065-19801220-ADV-01-00-EN.pdf, last accessed 22 September 2025, paragraph 37. *See also* Statute of the International Court of Justice, XV UNCIO 355, adopted 24 October 1945, entered into force 26 June 1946, available at: https://www.icj-cij.org/statute, last accessed 22 September 2025, Article 38(1)(c).

[85] Procedures under Article 26 of the ILO Constitution are of a "judicial nature". *See* Towards Freedom and Dignity in Myanmar: Report of the Commission of Inquiry established in accordance with article 26 of the ILO Constitution concerning the non-observance by Myanmar of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Forced Labour Convention, 1930 (No. 29), International Labour Organization, 4 August 2023, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/publication/wcms_894548.pdf, last accessed 23 September 2025, paragraph 22; For national reconciliation and social justice in the Bolivarian Republic of Venezuela: Report of the Commission of Inquiry appointed under article 26 of the Constitution of the International Labour Organization to examine the observance by the Government of the Bolivarian Republic of Venezuela of the Minimum Wage-Fixing Machinery Convention, 1928 (No. 26), the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Tripartite Consultation (International Labour Standards) Convention, 1976 (No.144), International Labour Organization, 17 September 2019, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/publication/wcms_724400.pdf, last accessed 23 September 2025, paragraph 88; Truth, reconciliation and justice in Zimbabwe: Report of the Commission of Inquiry appointed under article 26 of the Constitution of the International Labour Organization to examine the observance by the Government of Zimbabwe of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98), International Labour Organization, 18 December 2009 ("**2009 Commission of Inquiry Report on Article 26 Complaint against Zimbabwe**"), available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@relconf/documents/meetingdocument/wcms_123293.pdf, last accessed 23 September 2025, paragraph 30; Trade Union Rights in Belarus, Report of the Commission of Inquiry appointed under article 26 of the Constitution of the International Labour Organization to examine the Observance by the Government of the Republic of Belarus of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87) and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98), International Labour Organization, 23 July 2004, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40dgreports/%40dcomm/documents/meetingdocument/kd00067.pdf, last accessed 23 September 2025, paragraph 40.

[86] *See* Chester Brown, *The Inherent Powers of International Courts and Tribunals*, 76 BRITISH YEARBOOK OF INTERNATIONAL COURTS AND TRIBUNALS (2005) 195, (Annex 28), page 231 ("One of these is the function of ensuring the proper administration of international justice. This is distinct from the function of settling disputes, in that it emphasizes the need for effectiveness and efficiency in judicial decision-making, and it is well established in the jurisprudence of international courts, as well as in the literature"); Julien Cazala, "Good Administration of Justice" (Annex 23), *Max Planck Encyclopedias of Public International Law*, December 2019, (Annex 26), paragraph 2 ("It can easily be understood that the proper administration of proceedings may favour good justice (a fair, equitable, reasonable, and efficient outcome of the proceedings").

[87] WTO Appellate Body Report, *Canada – Measures Relating to Exports of Wheat and Treatment of Imported Grain*, adopted 30 August 2004, WT/DS276/AB/R, available at: https://www.wto-ilibrary.org/content/reports/25189840/64/read, last accessed 23 September 2025, paragraph 133.

[88] *See*, for example, 2014 ILO Report on Bahrain Complaint, available at: https://www.ilo.org/resource/record-decisions/gb/320/decision-15th-item-agenda-complaint-concerning-non-observance-bahrain, last accessed 22 September 2025, paragraph 14; International Labour Office, *Complaint Concerning Non-observance by Venezuela of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98), Made by Various Delegates at the 92nd Session (2004) of the Conference under article 26 of the ILO Constitution*, Governing Body, November 2005, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50012:0::NO:50012:P50012_COMPLAINT_PROCEDURE_ID,P50012_LANG_CODE:2508308,en:NO, last accessed 23 September 2025; 2017 ILO Report on Qatar Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_586479.pdf, last accessed 22 September 2025, paragraph 1(c).

[89] *See* "Decisions on the reports of the Officers of the Governing Body concerning the receivability of representations made under article 24 of the ILO Constitution: GB.352/INS/20/2 to INS/20/10/Decisions", *International Labour Organization*, 7 November 2024, available at: https://www.ilo.org/resource/record-decisions/gb/352/decisions-reports-officers-governing-body-concerning-receivability, last accessed 23 September 2025.

[90] *See* Migrant Worker Conditions in the Kingdom of Saudi Arabia: An Overview of Worker Abuses Linked with Forced Labour, *Building and Wood Workers' International* (undated), page 14, attached to Building and Wood Workers' International Representation under Article 24 of the ILO Constitution Regarding Violations of International Labour Standards by the Kingdom of Saudi Arabia, Supporting Document, Migrant Worker Conditions in the Kingdom of5 June 2024 ("**2024 ILO BWI Representation against Saudi Arabia**: An Overview of Worker Abuses Linked with Forced Labour, page 14;"); Complaint, Section IV, page 10.

[91] *See* 2024 ILO BWI Representation under Article 24 of the ILO Constitution Regarding Violations of International Labour Standards by the Kingdom of against Saudi Arabia, Supporting Document, Migrant Worker Conditions in the Kingdom of Saudi Arabia: An Overview of Worker Abuses Linked with Forced Labour, pages 5–7; Complaint, Section II, pages 3 and 5.

[92] *See* 2024 ILO BWI Representation under Article 24 of the ILO Constitution Regarding Violations of International Labour Standards by the Kingdom of against Saudi Arabia, Supporting Document, Migrant Worker Conditions in the Kingdom of Saudi Arabia: An Overview of Worker Abuses Linked with Forced Labour, pages 16-23; Complaint, Section II, page 3.

[93] *See* Complaint, Section I, page 1.

[94] *See* "Seventh Supplementary Report: Report of the Committee set up to examine the representation alleging non-observance by Saudi Arabia of Convention No. 29 and its Protocol of 2014, and Conventions Nos 81, 95 and 111", GB.355/INS/16/7, *International Labour Organization*, 27 November 2025, available at: https://www.ilo.org/sites/default/files/2025-11/GB355-INS-16-7-Saudi%20Arabia-EN.pdf, last accessed 23 December 2025.

[95] *See* "Decisions on the reports of the Officers of the Governing Body concerning the receivability of representations made under article 24 of the ILO Constitution: GB.352/INS/20/2 to INS/20/10/Decisions", *International Labour Organization*, 7 November 2024, available at: https://www.ilo.org/resource/r_ecord-decisions/gb/352/decisions-reports-officers-governing-body-concerning-receivability, last accessed 23 September 2025.

[96] International Labour Office, *Compendium of Standing Orders and Other Procedural Texts of the Governing Body*, Annex I: Standing Orders Concerning the Procedure for the Examination of Representations under Articles 24 and 25 of the Constitution of the International Labour Organization, GB.350/LILS/1, March 2024, available at: https://www.ilo.org/sites/default/files/2024-10/GB-Compendium-2021%28Rev.%29-%5BJUR-240315-001%5D-Web-En.pdf, last accessed 23 September 2025, paragraph 12.

[97] International Labour Office, *Handbook of Procedures Relating to International Labour Conventions and Recommendations*, revised ed. (Geneva: International Labour Office, 2019), available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40normes/documents/publication/wcms_697949.pdf, last accessed 23 September 2025, Appendix IV, question 7.

[98] "Special procedures for the examination in the International Labour Organization of complaints alleging violations of freedom of association", *International Labour Organization*, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:62:0::NO:62:P62_LIST_ENTRIE_ID:4046805:NO, last accessed 10 September 2025, paragraph 29.

[99] *See*, for example, August Reinisch, *The Use and Limits of res judicata and lis pendens as Procedural Tools to Avoid Conflicting Dispute Settlement Outcomes*, 3 The Law & Practice of International Courts and Tribunals: A Practitioners' Journal (2004) 37, (Annex 27), page 43; Campbell McLachlan, *Lis Pendens in International Litigation* (Martinus Nijhoff Publishers, 2009), (Annex 20), pages 117–127. For example, in *Martin v Spain*, the European Commission held that a claim by 23 union activists was inadmissible as it duplicated an earlier ILO claim by their trade union, the parties being "substantially the same": *Martin v Spain*, ECtHR, Case 16358/90, Admissibility Decision, October 1992, available at: https://hudoc.echr.coe.int/#{%22fulltext%22:[%22martin%20v%20spain%22],%22documentcollectionid2%22:[%22DECISIONS%22],%22itemid%22:[%22001-85466%22]}, last accessed 23 September 2025.

[100] *See* Case No 3468 (Saudi Arabia) - Complaint date: 05-JUN-24, available at https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50001:0::NO:50001:P50001_COMPLAINT_FILE_ID: 4399445 .

[101] *See* "Supervising the application of International Labour Standards for Saudi Arabia", *International Labour Organization*, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:11110:0::NO:11110:P11110_COUNTRY_ID,P11110_ CONTEXT:103208,SC, last accessed 10 September 2025.

[102] *See* Complaint, Section II, page 4.

[103] Observation of the Committee of Experts on the Application of Conventions and Recommendations on Saudi Arabia's ratification of ILO Convention No. 29 and its 2014 Protocol, adopted 2024, published 113rd ILC Session (2025), *International Labour Organization*, ("**2024 CEACR observations on Saudi Arabia's ratification of ILO Convention No. 29 and the 2014 Protocol**"), available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID% 2CP13100_COUNTRY_ID:4414942%2C103208, last accessed 10 September 2025.

[104] 2024 CEACR observations on Saudi Arabia's ratification of ILO Convention No. 29 and the 2014 Protocol, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:13100:0::NO::P13100_COMMENT_ID%2CP13100_COUNTRY_ID:4414942%2C103208, last accessed 10 September 2025.

[105] "Complaint procedure (Art. 26)", *International Labour Standards*, available at: https://www.ilo.org/international-labour-standards/ilo-supervisory-system-special-procedures/complaint-procedure-art26.

[106] *See* James Crawford, *Brownlie's Principles of Public International Law* (Oxford University Press, 9ed., 2019) ("**Brownlie's Principles of International Law**"), (Annex 24), pages 526, 538.

[107] "Draft Articles on Responsibility of States for Internationally Wrongful Acts", Report of the Commission to the General Assembly on the work of its fifty-third session, Yearbook of the International Law Commission, A/CN.4/SER.A/2001/Add.1 (Part 2), *International Law Commission*, 10 August 2001, available at: https://legal.un.org/ilc/publications/yearbooks/english/ilc_2001_v2_p2.pdf, last accessed 23 September 2025, Articles 12, 14 and 15. *See also* "Materials on the Responsibility of States for Internationally Wrongful Acts", *United Nations Legislative Series* (2 ed.), ST/LEG/SER.B/25/Rev.1, 2023, available at: https://legal.un.org/legislativeseries/pdfs/volumes/english/book25.pdf, last accessed 23 September 2025, page 179 ("The essence of an internationally wrongful act lies in the non-conformity of the State's *actual* conduct with the conduct it ought to have adopted in order to comply with a particular international obligation.") (Emphasis added.)

[108] Shinichi Ago, "Complaint Procedure: International Labour Organization (ILO)" (Annex 25), *Max Planck Encyclopedias of International Law*, May 2020 ("**Complaint Procedure: International Labour Organization (ILO)**"), (Annex 26), paragraph 5.

[109] *See*, for example, 2017 ILO Report on Qatar Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_586479.pdf, last accessed 22 September 2025; 2014 ILO Report on Bahrain Complaint, available at: https://www.ilo.org/resource/record-decisions/gb/320/decision-15th-item-agenda-complaint-concerning-non-observance-bahrain, last accessed 22 September 2025.

[110] Complaint Procedure: International Labour Organization (ILO), (Annex 25), paragraph 5.

[111] Saudi Arabia and ILO seal new phase of decent work reforms, June 2025, available at: https://www.ilo.org/resource/news/saudi-arabia-and-ilo-seal-new-phase-joint-work-advance-decent-work-reforms, last accessed 22 September 2025.

[112] ILO Overview of Saudi Arabia, February 2017, available at: https://www.ilo.org/resource/saudi-arabia, last accessed 10 September 2025.

[113] ILO Overview of Saudi Arabia, February 2017, available at: https://www.ilo.org/resource/saudi-arabia, last accessed 10 September 2025.

[114] Complaint Procedure: International Labour Organization (ILO), (Annex 25), paragraph 5.

[115] Complaint Procedure: International Labour Organization (ILO), (Annex 25), paragraph 5.

[116] "Decision concerning the complaint alleging non-observance by Saudi Arabia of Conventions Nos 29, 95, 111, 143 and 155", GB.355/INS/17/1/Decision, *International Labour Organization*, 27 November 2025, available at: https://www.ilo.org/resource/conference-paper/gb/355/decision-concerning-complaint-alleging-non-observance-saudi-arabia, last accessed 23 December 2025.

[117] *See* Complaint, Section II, page 3, referring to the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), the Right to Organise and Collective Bargaining Convention, 1949 (No. 98) and the 1998 Declaration on Fundamental Principles and Rights at Work and its Follow-up. *See also* Complaint, Section II, page 3, Convention (No. 87) concerning freedom of association and protection of the right to organise, adopted 9 July 1948, entered into force 4 July 1950, 68 UNTS 17, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO:12100:P12100_INSTRUMENT_ID:312232:NO, last accessed 23 September 2025; Convention (No. 98) concerning the application of the principles of the right to organise and to bargain collectively, as modified by the Final Articles Revision Convention, 1961, adopted 1 July 1949, entered into force 18 July 1951, 96 UNTS 257, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO:12100:P12100_INSTRUMENT_ID:312243:NO, last accessed 23 September 2025; and the ILO 1998 Declaration on Fundamental

Principles and Rights at Work and its Follow-up, adopted on 18 June 1998, available at: https://www.ilo.org/sites/default/files/2024-04/ILO_1998_Declaration_EN.pdf, last accessed 23 September 2025.

[118] ILO Constitution, Article 26(1). ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025.

[119] "Special procedures Article 19: The complaint alleging non-observance is filed", *International Labour Organization*, ("**Special procedures Article 19: The complaint alleging non-observance is filed**"), available at: https://guide-supervision.ilo.org/defending/a-complaint-can-be-filed-about-ineffective-observance-of-any-ratified-convention/, last accessed 1023 September 2025.

[120] International Labour Office, *Third Report: Complaint Alleging Non-observance by Austria, Belgium, Bulgaria, Croatia, Cyprus, Czechia, Denmark, Estonia, Finland, France, Germany, Greece, Hungary, Ireland, Italy, Latvia, Lithuania, Luxembourg, Malta, Netherlands, Poland, Portugal, Romania, Slovakia, Slovenia, Spain and Sweden of the Discrimination (Employment and Occupation) Convention, 1958 (No. 111) and the Employment Policy Convention, 1964 (No. 122)* ("**2022 Third Report**"),, Governing Body, 346th session, 31 October 2022, GB.346/INS/18/3 ("**Third Report on Convention No. 111 Complaint**"), available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_860021.pdf, last accessed 23 September 2025, paragraphs 1–8.

[121] Truth, reconciliation and justice in Zimbabwe: Report of the Commission of Inquiry appointed under article 26 of the Constitution of the International Labour Organization to examine the observance by the Government of Zimbabwe of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98), International Labour Organization, 18 December 2009, paragraph 38. 2009 Commission of Inquiry Report on Article 26 Complaint against Zimbabwe, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@relconf/documents/meeting document/wcms_123293.pdf, last accessed 23 September 2025, paragraph 38.

[122] *See*, for example, ILO Constitution, Article 24. *See*, for example, ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 24.

[123] *See* "Decisions on the reports of the Officers of the Governing Body concerning the receivability of representations made under article 24 of the ILO Constitution",: GB.352/INS/20/2 to INS/20/10/Decisions,", *International Labour Organization*, 7 November 2024, available at: https://www.ilo.org/resource/record-decisions/gb/352/decisions-reports-officers-governing-body-concerning-receivability, last accessed 1023 September 2025; 2024 ILO BWI Representation against Saudi Arabia, page 4.

[124] *See* Brownlie's Principles of Public International Law, (Annex 24), page 19; Henry G. Schermers & Niels M. Blokker, *International Institutional Law: Unity within Diversity* (Brill Nijhoff Publishers, 6ed., 2018), (Annex 22), page 836.

[125] *See* Brownlie's Principles of Public International Law, (Annex 24), page 359; ILO Constitution, Article 19 (1).

[126] ILO Constitution, Article 26(1).

[127] ILO Constitution, Article 5(e).

[128] ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 26(1).

[129] "Special procedures Article 19: The complaint alleging non-observance is filed", *International Labour Organization*, available at: https://guide-supervision.ilo.org/defending/a-complaint-can-be-filed-about-ineffective-observance-of-any-ratified-convention/, last accessed 1023 September 2025.

[130] ILO, *2022 Third Report*, GB.346/INS/18/3 (2022), paragraph 6. Third Report on Convention No. 111 Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_860021.pdf, last accessed 23 September 2025, paragraph 6.

[131] ILO, *2022 Third Report*, GB.346/INS/18/3 (2022), paragraph 7. Third Report on Convention No. 111 Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_860021.pdf, last accessed 23 September 2025, paragraph 7.

[132] ILO, *2022 Third Report*, GB.346/INS/18/3 (2022), paragraph 7. Third Report on Convention No. 111 Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_860021.pdf, last accessed 23 September 2025, paragraph 7.

[133] *See* Section 6.2.

[134] *See* Complaint, Section II, pages 3–4.

[135] *See* Complaint, Section II, page 3.

[136] *See* Complaint, Section II, page 4-7.

[137] *See* Complaint, Section II, page 5. *See* also Complaint, Section II, pages 4–7.

[138] *See* Complaint, Section III, pages 7–10.

[139] "Special procedures Article 19: The complaint alleging non-observance is filed", *International Labour Organization*, available at: https://guide-supervision.ilo.org/defending/a-complaint-can-be-filed-about-ineffective-observance-of-any-ratified-convention/, last accessed 1023 September 2025.

[140] Footnote 2 above explains the distinction between the concepts of receivability and admissibility.

[141] *See* "Saudi Arabia", *International Labour Organization*, 13 February 2017, available at: https://www.ilo.org/resource/saudi-arabia, last accessed 10 September 2025.

[142] International Labour Office, *Discontinuation of the Procedure Initiated by the Governing Body in accordance with Article 26(4) of the ILO Constitution Concerning the Observance by Nigeria of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98)*, Governing Body, 273rd session, November 1998, GB.273/15/1, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50012:0::NO:50012:P50012_COMPLAINT_PROCEDURE_ID,P50012_LANG_CODE:2508284,en:NO, last accessed 23 September 2025, paragraph 4.

[143] International Labour Office, *Discontinuation of the Procedure Initiated by the Governing Body in accordance with Article 26(4) of the ILO Constitution Concerning the Observance by Nigeria of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98)*, Governing Body, 273rd session, November 1998, GB.273/15/1, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50012:0::NO:50012:P50012_COMPLAINT_PROCEDURE_ID,P50012_LANG_CODE:2508284,en:NO, last accessed 23 September 2025, paragraph 4.

[144] ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 26(1).

[145] ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 28.

[146] 2017 ILO Report on Qatar Complaint, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_586479.pdf, last accessed 22 September 2025; 2014 ILO Report on Bahrain Complaint, available at: https://www.ilo.org/resource/record-decisions/gb/320/decision-15th-item-agenda-complaint-concerning-non-observance-bahrain, last accessed 22 September 2025, paragraph 20; International Labour Office, *Complaint Concerning Non-observance by Guatemala of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), Made by Delegates to the 101st Session (2012) of the International Labour Conference under article 26 of the ILO Constitution*, Governing Body, 334th session, October 2018, GB.334/INS/9(Rev.), available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@relconf/documents/meetingdocument/wcms_647960.pdf, last accessed 22 September 2025.

[147] "Complaint procedure (Art. 26)", *International Labour Standards*, available at: https://www.ilo.org/international-labour-standards/ilo-supervisory-system-special-procedures/complaint-procedure-art26.

[148] *See* Towards Freedom and Dignity in Myanmar: Report of the Commission of Inquiry established in accordance with article 26 of the ILO Constitution concerning the non-observance by Myanmar of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Forced Labour Convention, 1930 (No. 29), International Labour Organization, 4 August 2023, available at: https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/publication/wcms_894548.pdf, last accessed 8 October 2025, paragraph 608; International Labour Office, Case No 698 against Senegal, Interim Report No 139, 1974, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50002:0::NO:50002:P50002_COMPLAINT_TEXT_ID:2899507, last accessed 8 October 2025, paragraph 453; International Labour Office, Case No 485 against Bolivian Republic of Venezuela, Interim Report No 95, 1967, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50002:0::NO:50002:P50002_COMPLAINT_TEXT_ID:2899004, last accessed 8 October 2025, paragraphs 279-280.

[149] "Draft Articles on Responsibility of States for Internationally Wrongful Acts", Report of the Commission to the General Assembly on the work of its fifty-third session, Yearbook of the International Law Commission, A/CN.4/SER.A/2001/Add.1 (Part 2), *International Law Commission*, 10 August 2001, available at: https://legal.un.org/ilc/publications/yearbooks/english/ilc_2001_v2_p2.pdf, last accessed 23 September 2025, Article 12.

[150] *See* Aniruddha Rajput, "Standard of Proof", *Max Planck Encyclopedias of International Law*, February 2021, (Annex 26), paragraph 69 ("Human rights fact-finding missions also adopt different standards. Several commissions have used balance of probabilities … Other standards that have been used are 'reasonable grounds to believe' … 'reasonable suspicion' … or no reference to any standard at all"); Rüdiger Wolfrum & Mirka Möldner, "International Courts and Tribunals, Evidence", *Max Planck Encyclopedias of International Law*, August 2013, paragraphs 75–79, (Annex 21).

[151] ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 26.

[152] *See* Complaint, Annex 1, pages 13-28, Annex 1 contains the ILO's preliminary comments on the bilateral labour agreements between the Federal Republic of Somalia and the Kingdom of Saudi Arabia on the recruitment of Somalian workers in the Kingdom. It does not support the factual allegations being made in the Complaint.

[153] *See* Complaint, Section II, pages 4–7.

[154] *See* Complaint, Section II, pages 4–7.

[155] *See* Complaint, Section III, page 8.

[156] *See* Complaint, Section III, pages 7–10

[157] *See*, for example, *MO v Secretary of State for the Home Department* [2011] UKUT 00190 (IAC), paragraph 126. The Upper Tribunal (Immigration and Asylum Chamber) exercised a "great deal of caution" when considering reports from Amnesty international. It noted that "[t]he Tribunal generally holds reports from Amnesty International in high esteem, but bearing in mind the standards which it states that it applies to its own evidence-gathering, we are struck by the lack of any sourcing of its conclusion . . . [t]heir reports appear to rely on their general opening statement declaring that individuals' stories are properly checked and cross-checked. But the actual accounts regarding these two are not themselves sourced . . . [i]t may well be that Amnesty International has cogent reasons for treating their cases as verified, but we are not told what they are. We are also struck by the lack of any indication of the reliability of the source of its information." The Administrative Court within the King's Bench Division of the High Court of Justice in the United Kingdom has expressed scepticism and distrust of reporting from Amnesty International. In *Mustafa Kamel Mustafa (Otherwise Abu Hamza) v The Government of the United States of America, Secretary of State for the Home Department*, it noted that "[n]o one needs reminding of Amnesty International reputation, but in this report a great deal of comment is erected on the basis of very little evidence" (paragraph 62). The Court in that case further disagreed with the findings in the Amnesty International report. *See Mustafa Kamel Mustafa (Otherwise Abu Hamza) v The Government of the United States of America, Secretary of State for the Home Department* [2008] EWHC 1357 (Admin), available at: https://www.bailii.org/cgi-bin/format.cgi?doc=/ew/cases/EWHC/Admin/2008/1357.html&query=(.2008.)+AND+(EWHC)+AND+(1357).

[158] *See* Complaint, Section IV, pages 10–12.

[159] "Complaint procedure (Art. 26)", *International Labour Standards*, available at: https://www.ilo.org/international-labour-standards/ilo-supervisory-system-special-procedures/complaint-procedure-art26.

[160] *See* Report of the Commission Appointed under Article 26 of the Constitution of the International Labour Organisation to Examine the Complaint Filed by the Government of Portugal concerning the Observance by the Government of Liberia of the Forced Labour Convention, 1930 (No. 29), International Labour Organization, April 1963, available at: https://webapps.ilo.org/public/libdoc/ilo/P/09604/09604(1963-46-2-Suppl.2).pdf, last accessed 8 October 2025, paragraph 50(6); Report of the Commission Appointed under Article 26 of the Constitution of the International Labour Organisation to Examine the Complaints concerning the Observance by Greece of the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and of the Right to Organise and Collective Bargaining Convention, 1949 (No. 98), Made by a Number of Delegates to the 52nd Session of the International Labour Conference, International Labour Organization, 1971, available at: 09604(1971-54-2-special-suppl).pdf, last accessed 8 October 2025, paragraphs 57(5), 137, 139, 155, 176; International Labour Office, Case No 3197 against Peru, Definitive Report No 391, 2019, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50002:0::NO:50002:P50002_COMPLAINT_TEXT_ID:4017604, last accessed 8 October 2025, paragraph 501.

[161] *See* Complaint, Section II, pages 4–7.

[162] *See* Complaint, Section II, page 3.

[163] *See* Complaint, Section II, page 3–7.

[164] *See* Complaint, Section II, pages 5–6.

[165] *See* Complaint, Section II, page 5–6.

[166] *See* Complaint, Section IV, pages 10–12 (purported wage theft is described in testimonials 1, 3–5 and 11, and forced labour in all 11 testimonials).

[167] *See* Complaint, Section II, page 3.

[168] *See* Complaint, Section II, page 3.

[169] *See* Complaint, Section II, page 3.

[170] *See* Complaint, Sections II–III, pages 2–3.

[171] *See* Complaint, Section I(A), page 2.

[172] *See* Complaint, Section I(A), page 2.

[173] *See* Complaint, Section I(A), page 1.

[174] *See* Complaint, Section II, pages 4–7.

[175] *See* Complaint, Section II, pages 4–5.

[176] *See* Complaint, Section II, page 6.

[177] *See* Complaint, Section II, page 4-7.

[178] *See* Complaint, Section II, pages 4–7.

[179] *See* Complaint, Section II, page 5.

[180] *See* Complaint, Section II, pages 4–7.

[181] Forced Labour Convention, 1930 (No. 29), Articles 1 and 2.

[182] *See* Complaint, Section II, pages 4–7.

[183] Convention (No. 29) concerning forced or compulsory labour, as modified by the Final Articles Revision Convention, 1946, adopted 28 June 1930, entered into force 1 May 1932, 39 UNTS 55 ("**ILO Convention No. 29**"), available at https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:::NO:12100:P12100_ILO_CODE:C 029:NO, last accessed 23 September 2025, Article 1.

[184] ILO Convention No. 29, available at https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:::NO:12100:P12100_ILO_CODE:C 029:NO, last accessed 23 September 2025, Article 25.

[185] *See* Complaint, Section II, pages 3–4.

[186] *See* Complaint, Section II, pages 5–6.

[187] *See* Complaint, Section IV, pages 10–12.

[188] *See* Complaint, Section IV, pages 3–4.

[189] *See* Complaint, Section II, page 5.

[190] *See* Complaint, Section II, page 4.

[191] *See* Complaint, Section II, pages 4–7.

[192] Complaint, Section II, pages 5–6. The examples given include Kenyan domestic workers (November 2022), Nigerian construction workers (February 2023), Ethiopian domestic workers (July 2022), Somali construction workers (January 2023) and Ghanaian domestic workers (April 2023).

[193] International Labour Office, *General Survey of the reports concerning the Protection of Wages Convention (No. 95) and the Protection of Wages Recommendation (No. 85), 1949*, 2003, paragraph 368.

[194] For example, the Complaint alleges: "Nigerian construction workers in Riyadh reported not being paid for several months": Complaint, Section II, page 5.

[195] The five purported testimonials in Complaint, Section IV, pages 10–12, are Worker S (a Nigerian Worker) ("I was hired as a driver but was forced to do heavy labour instead. My wages were withheld for months . . ."); Worker AS (a Ugandan Worker) ("I was forced to work long hours without pay"); Worker C (an Eritrean Worker) ("My employer locked me in the house and made me work long hours without pay"); Worker X (a

Somali Worker) (“My wages were withheld, and my movements were restricted”); and Worker K (a Ghanaian Worker) (“My employer withheld my wages and passport”).

196 *See* Complaint, Section IV, page 11.

197 *See* Complaint, Section IV, page 11.

198 *See* Articles 90(1)-(2), 88 and 92 of the Labor Law, requiring timely wage payment (weekly or monthly, as applicable), settlement of all entitlements at the end of service, and prohibiting deductions without legal basis or consent (Annex 5); *see* also “Wage Protection Program” confirming electronic monitoring of on-time, full wage payments.

199 The Kingdom of Saudi Arabia welcomes further information about these cases so that it can investigate these cases with the assistance of the ILO.

200 *See* Complaint, Section II, pages 5–6.

201 *See* Complaint, Section II, pages 4–7.

202 *General Survey of the reports concerning the Protection of Wages Convention (No. 95) and the Protection of Wages Recommendation (No. 85), 1949*, 2003, *International Labour Organization*, (“**2003 General Survey concerning the Protection of Wages**”), available at: https://webapps.ilo.org/public/libdoc/ilo/P/09661/09661(2003-91-1B)346.pdf, last accessed 23 September 2025, paragraph 368.

203 *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 1–2, 4–6), (Wage Theft and Economic Exploitation, examples 1–6); Complaint, Section IV, pages 10–12 (personal testimonies 1, 3–5 and 11).

204 *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 1–2, 4–6), (Wage Theft and Economic Exploitation, examples 1–6).

205 *See* Complaint, Section IV, pages 10–12 (personal testimonies 1, 3–5 and 11).

206 *See* Complaint, Section I(B)(2), page 2.

207 *See* Complaint, Section II, page 4.

208 *See* Complaint, Section II, page 4.

209 *See* Complaint, Section IV, pages 10–12.

210 ILO Convention No. 111 concerning discrimination in respect of employment and occupation, adopted 25 June 1958, entered into force 15 June 1960, 362 UNTS 31, ILO Convention No. 111, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_Ilo_Code:C111, last accessed 23 September 2025, Article 1. Article 1 defines discrimination as including: “(a) any distinction, exclusion or preference made on the basis of race, colour, sex, religion, political opinion, national extraction or social origin, which has the effect of nullifying or impairing equality of opportunity or treatment in employment or occupation; (b) such other distinction, exclusion or preference which has the effect of nullifying or impairing equality of opportunity or treatment in employment or occupation as may be determined by the Member concerned after consultation with representative employers' and workers' organisations, where such exist, and with other appropriate bodies”.

211 *See* Complaint, Section II, page 4.

212 ILO Convention No. 111, Articles 2 and 3.

213 *See* Council of Ministers Resolution No. 416 dated 10 January 2023.

214 *See* Complaint, Section III(1), pages 7–8.

[215] *See* Complaint, Section III(1), pages 7–8.

[216] *See* Complaint, Annex 1, pages 13–27.

[217] *See* Complaint, Section III(1), page 7.

[218] *See* Complaint, Section III(1), page 8, citing "Somalia: ITUC condemns exploitative labour agreements with Saudi Arabia", *ITUC*, 16 December 2024, available at: https://www.ituc-csi.org/Somalia-ITUC-condemns-exploitative-labour-agreements-with-Saudi-Arabia, last accessed 4 September 2025.

[219] *See* Complaint, Section III(1), page 8.

[220] *See* Complaint Procedure: International Labour Organization (ILO) 2020, (Annex 25), paragraph 5.

[221] *See* Complaint, Section I(A), page 1. See also Section I(B)(1), page 2: "The Kafala system—an exploitative sponsorship framework—remains intact, placing migrant workers under the complete control of their employers"; Section II, page 3: "The Kafala system … violate[s] various ILO agreements that ensure migrant workers' rights are safeguarded, respected and enforced."

[222] *See* Complaint, Section I(A), page 1. See also Section I(B)(1), page 2: "The Kafala system – an exploitative sponsorship framework – remains intact, placing migrant workers under the complete control of their employers"; Section II, page 3: "The Kafala system … violate[s] various ILO agreements that ensure migrant workers' rights are safeguarded, respected and enforced."

[223] *See* Saudi Press Agency website, "*Expatriate Workers' Rights in Saudi Arabia: Continuous Protection and Comprehensive Legislation*", available at: https://www.spa.gov.sa/en/N2273390, last accessed 08/10/2025.

[224] *See* Complaint, Section III, page 9.

[225] *See* Complaint, Section III, page 9.

[226] *See* Complaint, Section III(3), page 8.

[227] *See* Complaint, Section III(3), page 8.

[228] *See* Complaint, Section III, page 8.

[229] ILO Convention No. 29, available at https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:::NO:12100:P12100_ILO_CODE:C029:NO, last accessed 23 September 2025; Convention concerning the Protection of Wages, 1949 (No. 95), adopted 1 July 1949, entered into force 24 September 1952, 138 UNTS 225, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_ILO_CODE:C095, last accessed 22 September 2025; ILO Convention No. 111, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_Ilo_Code:C111, last accessed 23 September 2025.

[230] *See* Complaint, Section II, page 5.

[231] *See* Complaint, Section IV, page 10.

[232] *See* Complaint, Section II, page 4.

[233] *See* Complaint, Section II, page 7.

[234] *See* Complaint, Section II, page 5.

[235] ILO Constitution, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000%3A62%3A1566624867971040%3A%3ANO%3A62%3AP62_LIST_ENTRIE_ID%3A2453907%3ANO, last accessed 23 September 2025, Article 26.

[236] *See* Complaint, Section II, pages 4–7.

[237] *See* Complaint, Section IV, pages 10–12.

[238] *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 1, 2 and 6), (Wage Theft and Economic Exploitation, example 4), (Physical and Psychological Abuse, examples 3, 5 and 6); Complaint, Section IV, pages 10–12 (personal testimonies 2–4, 6–7 and 9–10).

[239] *See* Complaint, Section II, page 5 (Forced Labour and Human Trafficking, examples 2–3 and 5–6); Complaint, Section IV, pages 10–12 (personal testimonies 2–3 and 6–11).

[240] *See* Complaint, Section II, pages 5–6 (Forced Labour and Human Trafficking, examples 3 and 6), (Physical and Psychological Abuse, example 2); Complaint, Section IV, pages 10–12 (personal testimonies 2–10).

[241] *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 4–5); Complaint, Section IV, pages 10–12 (personal testimonies 1–6 and 8–11).

[242] *See* International Labour Office, *Report of the committee set up to examine the representation alleging non-observance by Qatar of the Forced Labour Convention, 1930 (No. 29), made under article 24 of the ILO Constitution by the International Trade Union Confederation and the Building and Woodworkers International*, Governing Body, 320th session, 24 March 2014, GB.320/INS/14/8, ("**2014 ILO Report on BWI Complaint against Qatar**"), available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50012:0::NO:50012:P50012_COMPLAINT_PROCEDURE_ID,P50012_LANG_CODE:3113101,en:NO, last accessed 23 September 2025, paragraph 42.

[243] *See* 2014 ILO Report on BWI Complaint against Qatar, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50012:0::NO:50012:P50012_COMPLAINT_PROCED URE_ID,P50012_LANG_CODE:3113101,en:NO, last accessed 23 September 2025, paragraph 41.

[244] *See* Complaint, Section I(A) (page 1), Section I(B)(1) (page 2), Section II (page 3), Section III, page 9.

[245] *See* Complaint, Section I(A), page 1.

[246] 2014 ILO Report on BWI Complaint against Qatar, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=1000:50012:0::NO:50012:P50012_COMPLAINT_PROCED URE_ID,P50012_LANG_CODE:3113101,en:NO, last accessed 23 September 2025.

[247] *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 4–5); Complaint, Section IV, pages 10–12 (personal testimonies 1–6 and 8–11).

[248] *See* Complaint, Section II, pages 4–7.

[249] *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 4–5).

[250] *See* Complaint, Section IV, pages 10–12 (personal testimonies 1–6 and 8–11).

[251] *See* Article 39 of the Labor Law (Annex 6).

[252] *See* Ministerial Resolution No. 75506 dated 29 November 2022, available at: https://www.hrsd.gov.sa/sites/default/files/2024-06/TRA00386%2823%29-31-5-2024-1.pdf, last accessed 06/10/2025.

[253] *See* Annex 5 to the Implementing Regulations of Labor Law and its Annexes.

[254] *See* Complaint, Section II, page 5.

[255] *See* Complaint, Section IV, page 10.

[256] *See* Executive Regulation for the Control and Governance of Labor Inspection Works.

[257] *See* MHRSD's website, "*The Ministry has conducted over 912000 inspection tours since the beginning of 2025*", available at: https://www.hrsd.gov.sa/en/media-center/news/%D8%A3%D9%83%D8%AB%D8%B1-%D9%85%D9%86-912-%D8%A3%D9%84%D9%81-%D8%AC%D9%88%D9%84%D8%A9-%D8%B1%D9%82%D8%A7%D8%A8%D9%8A%D8%A9-%D9%85%D9%86%D8%B0-%D9%85%D8%B7%D9%84%D8%B9-2025, last accessed 08/10/2025.

[258] *See* Chapter 13 of the Labor Law (work inspection) (Annex 7) and Executive Regulation for the Control and Governance of Labor Inspection Works.

[259] *See Najiz* Portal of the Ministry of Justice, available at: https://new.najiz.sa, last accessed 15 September 2025.

[260] *See* Ministerial Decision No. 91285 dated 2 January 2024, approving the Rules and Procedures Regulating the Amicable Settlement of Labor Disputes (Annex 17).

[261] *See* objectives and tasks of the National Committee of Workers Committees (Annex 18), available at: https://www.snc.org.sa/%D8%A7%D9%84%D8%A3%D9%87%D8%AF%D8%A7%D9%81-%D9%88%D8%A7%D9%84%D9%85%D9%87%D8%A7%D9%85/, last accessed 08/10/2025.

[262] *See* Royal Decree No. M/53 dated 3 July 2012, enacting the Enforcement Law.

[263] *See* Ministry of Justice website, "*Saudi MoJ launches second phase of preventive justice initiative to digitalize contracts*", available at: https://www.moj.gov.sa/English/MediaCenter/news/Pages/NewsDetails.aspx?itemId=998, last accessed 07/10/2025.

[264] *See* MHRSD's website, "*The Procedural Guide for ending the contractual relationship*", available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/%D8%A7%D9%84%D8%AF%D9%84%D9%8A%D9%84-%D8%A7%D9%84%D8%A5%D8%B1%D8%B4%D8%A7%D8%AF%D9%8A-%D9%84%D9%85%D8%A8%D8%A7%D8%AF%D8%B1%D8%A9-%D8%B9%D9%82%D8%AF-%D8%A7%D9%84%D8%B9%D9%85%D9%84-%D8%A7%D9%84%D9%85%D9%88%D8%AB%D9%82-%D8%B3%D9%86%D8%AF%D9%8B%D8%A7, last accessed 07/10/2025.

[265] *See* Ministry of Justice website, "*Saudi MoJ Launches Unified Translation Center Services on Taqadhi Platform*", available at: https://www.moj.gov.sa/English/MediaCenter/news/Pages/NewsDetails.aspx?itemId=1123, last accessed 08/10/2025.

[266] *See* Complaint, Section II (pages 3–4 and 5–6), Section IV (pages 10–12).

[267] *See* Complaint, Section II, pages 3–4.

[268] 2003 General Survey concerning the Protection of Wages, available at: https://webapps.ilo.org/public/libdoc/ilo/P/09661/09661(2003-91-1B)346.pdf, last accessed 23 September 2025, paragraph 368.

[269] *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 1–2, 4–6), (Wage Theft and Economic Exploitation, examples 1–6); Complaint, Section IV, pages 10–12 (personal testimonies 1, 3–5 and 11).

[270] *See* Complaint, Section II, pages 4–6 (Forced Labour and Human Trafficking, examples 1–2, 4–6), (Wage Theft and Economic Exploitation, examples 1–6).

[271] *See* Complaint, Section IV, pages 10–12 (personal testimonies 1, 3–5 and 11).

[272] 2003 General Survey concerning the Protection of Wages, available at: https://webapps.ilo.org/public/libdoc/ilo/P/09661/09661(2003-91-1B)346.pdf, last accessed 23 September 2025, paragraph 368.

[273] *See* Council of Ministers Resolution No. 733 dated 7 July 2020.

[274] *See* Guidelines for the Expatriate Worker Wage Insurance Service for Private Sector Defaults, issued pursuant to Ministerial Decision dated 06 October 2024.

[275] *See* Article 19 of the Labor Law (Annex 8).

[276] *See* MHRSD's website, "*The Guideline for the Initiative Documented Employment Contract as an Enforceable Instrument*" (news release date 05/10/2025), available at: https://www.hrsd.gov.sa/en/knowledge-centre/decisions-and-regulations/regulation-and-procedures/%D8%A7%D9%84%D8%AF%D9%84%D9%8A%D9%84-%D8%A7%D9%84%D8%A5%D8%B1%D8%B4%D8%A7%D8%AF%D9%8A-%D9%84%D9%85%D8%

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277 *See* MHRSD's website, "*Ministry of Human Resources and Social Development: Over 900,000 Establishments Covered by Wage Protection Program with Compliance Rate Exceeding 88%*" (news release date 31/12/2024), available at: https://www.hrsd.gov.sa/en/media-center/news/, last accessed 14/09/2025.

278 *See* MHRSD's website, "*The Ministry of Human Resources and Social Development Conducts Over 700,000 Inspection Visits During the First Half of 2024*" (news release date 17/09/2024), available at: https://www.hrsd.gov.sa/en/media-center/news/240820241, last accessed 08/10/2025.

279 *See* Saudi Press Agency website, "*Wage Protection Program: Enhancing Labor Market Integrity in Saudi Arabia*" (news release date 31/12/2024), available at: https://www.spa.gov.sa/en/N2235811, last accessed 08/10/2025.

280 See "*Saudi HR ministry cracks down on labor violations*", ARAB NEWS, 24 August 2024, available at: https://www.arabnews.com/node/2568664/saudi-arabia, last accessed 15/09/2025.

281 *See* Executive Regulation for the Control and Governance of Labor Inspection Works.

282 *See* Complaint, Section I(B)(2), page 2.

283 ILO Convention No. 111, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_Ilo_Code:C111, last accessed 23 September 2025, Article 2.

284 ILO Convention No. 111, , available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_Ilo_Code:C111, last accessed 23 September 2025, Article 3.

285 ILO Convention No. 111, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_Ilo_Code:C111, last accessed 23 September 2025, Articles 2 and 3.

286 ILO Convention No. 111, available at: https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_Ilo_Code:C111, last accessed 23 September 2025, Article 2.

287 *See* Article 8 of the Basic Law of Governance, Article 61 of the Labour Law (Annex 2), and Article 9(8) of the Implementing Regulations of Labour Law and its Annexes (Annex 13).

288 *See* Riyadh Region Municipality website, "*Women Empowerment*", available at: https://www.alriyadh.gov.sa/en/content/women-empowerment, last accessed 15/09/2025.

289 *See* Council of Ministers Resolution No. 416 dated 10 January 2023.

290 *See* Point (1) and (2) of Council of Ministers Resolution No. 416 dated 10 January 2023.

291 *See* Objectives of the National Policy for Promoting Equal Opportunities and Equal Treatment in Employment and Occupation in the Kingdom (Annex 16).

292 *See* Point (3) of Council of Ministers Resolution No. 416 dated 10 January 2023.

293 Ministerial Decision No. 51848 dated 5 November 2020.